

[illegible]

Solicitation/Contract Form Continuation

NCTC INSTRUCTOR SUPPORT

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	INSTRUCTOR SUPPORT Pricing Arrangement: Firm Fixed Price	12	Months		
0002	TRAVEL CLIN for Contractor travel CONUS not to exceed USD 15,000.00. The not to exceed amount is the maximum amount. The Contractor shall be authorized travel expenses consistent with the Joint Travel Regulation (JTR). All travel and authorization shall be approved by the COR prior to any travel Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 1001	INSTRUCTOR SUPPORT Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1002	TRAVEL CLIN for Contractor travel CONUS not to exceed USD 15,000.00. The not to exceed amount is the maximum amount. The Contractor shall be authorized travel expenses consistent with the Joint Travel Regulation (JTR). All travel and authorization shall be approved by the COR prior to any travel Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 2001	INSTRUCTOR SUPPORT Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 2002	TRAVEL CLIN for Contractor travel CONUS not to exceed USD 15,000.00. The not to exceed amount is the maximum amount. The Contractor shall be authorized travel expenses consistent with the Joint Travel Regulation (JTR). All travel and authorization shall be approved by the COR prior to any travel Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 3001	INSTRUCTOR SUPPORT	12	Months		

	Pricing Arrangement: Firm Fixed Price				
Option Line Item 3002	TRAVEL CLIN for Contractor travel CONUS not to exceed USD 15,000.00. The not to exceed amount is the maximum amount. The Contractor shall be authorized travel expenses consistent with the Joint Travel Regulation (JTR). All travel and authorization shall be approved by the COR prior to any travel Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 4001	INSTRUCTOR SUPPORT Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 4002	TRAVEL CLIN for Contractor travel CONUS not to exceed USD 15,000.00. The not to exceed amount is the maximum amount. The Contractor shall be authorized travel expenses consistent with the Joint Travel Regulation (JTR). All travel and authorization shall be approved by the COR prior to any travel Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 5001	INSTRUCTOR SUPPORT Pricing Arrangement: Firm Fixed Price	6	Months		
5002	TRAVEL CLIN for Contractor travel CONUS not to exceed USD 15,000.00. The not to exceed amount is the maximum amount. The Contractor shall be authorized travel expenses consistent with the Joint Travel Regulation (JTR). All travel and authorization shall be approved by the COR prior to any travel Pricing Arrangement: Cost No Fee	1	Lot		

Continuation of Description

Requirements

INSTRUCTOR SUPPORT SERVICES NCTC GULFPORT, MS

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
0002	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 1002	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA

	NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 2002	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 3002	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA

	NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 4001	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 4002	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 5001	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
5002	Inspection and Acceptance Location Both Destination Instructions: Follow PWS DoDAAC: N65971 CountryCode: USA

NAVAL CONSTRUCTION TRAINING CENTER
5510 CBC 8TH STREET, BLDG 443
GULFPORT, MS 39501-5003
UNITED STATES

Contracting Officer Representative, COR
Telephone: 228-871-3356

Continuation of Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Period From 01 Apr 2026 to 31 Mar 2027 Period of Performance From 01 Apr 2026 To 31 Mar 2027	12 Months	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
0002	Delivery Period From 01 Apr 2026 to 31 Mar 2027 Period of Performance From 01 Apr 2026 To 31 Mar 2027	1 Lot	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 1001	Delivery Period From 01 Apr 2027 to 01 May 2028 Period of Performance From 01 Apr 2027 To 31 Mar 2028	12 Months	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
	Delivery Period From 01 Apr 2027 to 31 Mar 2028	1 Lot	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003

Option Line Item 1002	Period of Performance From 01 Apr 2027 To 31 Mar 2028		UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 2001	Delivery Period From 01 Apr 2028 to 31 Mar 2029 Period of Performance From 01 Apr 2028 To 31 Mar 2029	12 Months	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 2002	Delivery Period From 01 Apr 2028 to 31 Mar 2029 Period of Performance From 01 Apr 2028 To 31 Mar 2029	1 Lot	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 3001	Delivery Period From 01 Apr 2029 to 31 Mar 2030 Period of Performance From 01 Apr 2029 To 31 Mar 2030	12 Months	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
	Delivery Period From 01 Apr 2029 to 31 Mar 2030	1 Lot	Ship To DoDAAC: N65971

Option Line Item 3002	Period of Performance From 01 Apr 2029 To 31 Mar 2030		CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 4001	Delivery Period From 01 Apr 2030 to 31 Mar 2031 Period of Performance From 01 Apr 2030 To 31 Mar 2031	12 Months	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 4002	Delivery Period From 01 Apr 2030 to 31 Mar 2031 Period of Performance From 01 Apr 2030 To 31 Mar 2031	1 Lot	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
Option Line Item 5001	Delivery After Delivery Date 31 Mar 2027	6 Months	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
	Delivery After Delivery Date 31 Mar 2027	1 Lot	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER

5002			5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES Contracting Officer Representative, COR Telephone: 228-871-3356
------	--	--	---

Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.227-7015	Technical Data-Commercial Products and Commercial Services.	Jan 2025		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.225-7051	Prohibition on Acquisition of Certain Foreign Commercial Satellite Services.	Dec 2022		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.222-42 **Statement of Equivalent Rates for Federal Hires.** **(May 2014)**

STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5 332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
<u>Technical Instructor</u>	<u>GS-9 Step 3</u>

==	==
==	==
==	==
==	==
==	==

(End of clause)

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

2-in-1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>N50082</u>
Issue By DoDAAC	<u>N68836</u>
Admin DoDAAC	<u>N68836</u>
Inspect By DoDAAC	<u>N65971</u>
Ship To Code	==
Ship From Code	==
Mark For Code	==

Service Approver (DoDAAC)	<u>N65971</u>
Service Acceptor (DoDAAC)	<u>N65971</u>
Accept at Other DoDAAC	==
LPO DoDAAC	<u>N65971</u>
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Made at time of award

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.227-14	Rights in Data-General.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	Jun 2020	Alternate I	Nov 2021
52.202-1	Definitions.	Jun 2020		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.222-1	Notice to the Government of Labor Disputes.	Feb 1997		
52.223-10	Waste Reduction Program.	May 2024		
52.223-19	Compliance with Environmental Management Systems.	May 2011		
52.227-1	Authorization and Consent.	Jun 2020		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.242-13	Bankruptcy.	Jul 1995		
52.242-15	Stop-Work Order.	Aug 1989		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7023	Reporting Requirements for Contracted Services.	Jul 2021		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		

FAR Clauses Incorporated by Full Text

52.219-17 Section 8(a) Award.

(Oct 2019)

Section8(a) Award (Oct 2019)

(a) By execution of a contract, the Small Business Administration (SBA) agrees to the following:

(1) To furnish the supplies or services set forth in the contract according to the specifications and the terms and conditions by subcontracting with the Offeror who has been determined an eligible concern pursuant to the provisions of section8(a) of the Small Business Act, as amended (15 U.S.C.637 (a)).

(2) Except for novation agreements, delegates to the NAVSUP FLC JACKSONVILLE the responsibility for administering the contract with complete authority to take any action on behalf of the Government under the terms and conditions of the contract; provided, however that the contracting agency shall give advance notice to the SBA before it issues a final notice terminating the right of the subcontractor to proceed with further performance, either in whole or in part, under the contract.

(3) That payments to be made under the contract will be made directly to the subcontractor by the contracting activity.

(4) To notify the NAVSUP FLC JACKSONVILLE Contracting Officer immediately upon notification by the subcontractor that the owner or owners upon whom 8(a) eligibility was based plan to relinquish ownership or control of the concern.

(5) That the subcontractor awarded a subcontract hereunder shall have the right of appeal from decisions of the cognizant Contracting Officer under the "Disputes" clause of the subcontract.

(b) The offeror/subcontractor agrees and acknowledges that it will, for and on behalf of the SBA, fulfill and perform all of the requirements of the contract.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 10 days.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 5 days provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 10 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far/> DFARS Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS (48 CFR CHAPTER 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)

(Jan 2025) Deviation 2025-O0004 (Mar 2025)

CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-O0003 AND 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☒ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☒ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204-30.

☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

- ☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).
- ☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ☐ (17) [Reserved]
- ☐ (18)
- (i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-6.
- ☐ (19)
- (i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-7.
- ☒ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025)(15 U.S.C. 637(d)(2) and (3)).
- ☐ (21)
- (i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).
- ☐ (ii) Alternate I (NOV 2016) of 52.219-9.
- ☐ (iii) Alternate II (NOV 2016) of 52.219-9.
- ☐ (iv) Alternate III (JUN 2020) of 52.219-9.
- ☐ (v) Alternate IV (JAN 2025) of 52.219-9.
- ☐ (22)
- (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-13.
- ☒ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).
- ☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).
- ☒ (26)
- (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-28.
- ☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

- ☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).
- ☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O.11755).
- ☒ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).
- ☐ (33) [Reserved]
- ☐ (34) [Reserved]
- ☒ (35)
- (i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-35.
- ☒ (36)
- (i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-36.
- ☒ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
- ☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
- ☒ (39)
- (i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- ☒ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ☐ (41)
- (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☒ (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).
- ☒ (47)
- (i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).

- ☐ (ii) Alternate I (JAN 2017) of 52.224-3.
- ☐ (48)
- (i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (OCT 2022) of 52.225-1.
- ☐ (49)
- (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (JAN 2025) of 52.225-3.
- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ☐ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).
- ☐ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).
- ☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).
- ☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).
- ☐ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
- ☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).
- ☐ (65)
- (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (APR 2003) of 52.247-64.

☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☒ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

☒ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

☒ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.219-7010 Notification of Competition Limited to Eligible 8(a) Participants-Partnership Agreement. (Oct 2019)

NOTIFICATION OF COMPETITION LIMITED TO ELIGIBLE 8(A) PARTICIPANTS-PARTNERSHIP AGREEMENT (OCT 2019)

(a) Offers are solicited only from small business concerns expressly certified by the Small Business Administration (SBA) for participation in SBA's 8(a) Program and which meet the following criteria at the time of submission of offer:

- (1) The Offeror is in conformance with the 8(a) support limitation set forth in its approved business plan.
- (2) The Offeror is in conformance with the Business Activity Targets set forth in its approved business plan or any remedial action directed by SBA.

(3) If the competition is to be limited to 8(a) concerns within one or more specific SBA regions or districts, then the offeror's approved business plan is on the file and serviced by SBA JACKSONVILLE DISTRICT. *[Contracting Officer completes by inserting the appropriate SBA District and/or Regional Office(s) as identified by SBA.]*

(b) By submission of its offer, the Offeror represents that it meets all of the criteria set forth in paragraph (a) of this clause.

(c) Any award resulting from this solicitation will be made directly by the Contracting Officer to the successful 8(a) offeror selected through the evaluation criteria set forth in this solicitation.

(d)(1) Unless SBA has waived the requirements of paragraphs (d)(1)(i) through (iii) and (d)(2) of this clause in accordance with 13 CFR 121.1204, a small business concern that provides an end item it did not manufacture, process, or produce, shall-

(i) Provide an end item that a small business has manufactured, processed, or produced in the United States or its outlying areas; for kit assemblers, see paragraph (d)(2) of this clause instead;

(ii) Be primarily engaged in the retail or wholesale trade and normally sell the type of item being supplied; and

(iii) Take ownership or possession of the item(s) with its personnel, equipment, or facilities in a manner consistent with industry practice; for example, providing storage, transportation, or delivery.

(2) When the end item being acquired is a kit of supplies, at least 50 percent of the total cost of the components of the kit shall be manufactured, processed, or produced by small businesses in the United States or its outlying areas.

(3) The requirements of paragraphs (d)(1)(i) through (iii) and (d)(2) of this clause do not apply to construction or service contracts.

(e) The _____ *[insert name of SBA's contractor]* will notify the NAVSUP FLC JACKSONVILLE Contracting Officer in writing immediately upon entering an agreement (either oral or written) to transfer all or part of its stock or other ownership interest to any other party.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	1.37_WD_2015_5147 rev. 28	Wage Determination		29 Dec 2025
02	1.05_PWS_COR_KO_CLEAN	Performance Work Statement		11 Sep 2025

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Sep 2023		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.209-7	Information Regarding Responsibility Matters.	Oct 2018		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7016	Covered Defense Telecommunications Equipment or Services-Representation.	Dec 2019		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Dec 2022		
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable NAVSUP FLC JACKSONVILLE CONTRACTING OFFICER[U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

ADDENDUM 52.212-1, Instructions to Offerors--Commercial Products and Commercial Services.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

The Government intends to post solicitation N6883626RS003 and all amendments to the Government Point of Entry via SAM.gov.

QUESTIONS

All questions and clarifications regarding this solicitation shall be submitted via email to Yaynel Yambo at yaynel.c.yambo.civ@us.navy.mil and Robert Edwards at robert.s.edwards42.civ@us.navy.mil ; subject line to read: Questions/Clarifications for N6883626RS003. Each question or comment should reference the applicable document, page number, and paragraph number. Offerors shall not include any proprietary information in a question because the Government will provide the question and answer to all potential offerors. All questions must be submitted no later than 5 business days after solicitation posting. No phone calls will be accepted.

The Government reserves the right not to respond to any questions received concerning this solicitation after the questions receipt date above. Accordingly, offerors are encouraged to carefully review all solicitation requirements and submit questions to the Government early in the proposal timeframe.

HISTORICAL DATA

Incumbent: Gemini Tech, Contract number N6883620C0002

Historical Resources: The below information illustrates the Historical Labor Mix utilized on past contracts and is provided as a tool to assist in establishing resources. It is the Contractor's sole responsibility to determine appropriate resources needed to accomplish work.

Position	Location	Hours (per year)
Instructors	Gulfport, MS	45,760

(a) North American Industry Classification System (NAICS) code and small business size standard. This procurement is being solicited in accordance with Federal Acquisition Regulation (FAR) Subpart 19.8 - Contracting with the Small Business Administration (The 8(a) Program). See block 10 of the SF1449 for the type of Small Business Set Aside, the North American Industry Classification Code System (NAICS), and the Small Business Size Standard.

(b) Submission of offers. Offerors shall submit offers in PDF format by volume as described below. Each volume shall contain a cover sheet with #1 and #3 below.

The offer shall contain the following information:

1. Solicitation number as indicated on page one (1) of the SF1449, Block 5 and the Title of the procurement.
2. Time specified for receipt of offers: Offerors shall ensure that offers are received by the Government point of contact no later than the date and time indicated on page one (1) of the SF1449, Block 8.
3. Name, title, e-mail address, and telephone number of the individual(s) with authority to bind the company. Offeror's POC information for contractual questions/discussions. CAGE Code, Unique Entity ID (UEI), Business Size.
4. Technical Description: See volumes below.
5. Terms of any express warranty: Not modified.

6. Provide Price and any discount terms as described in Price Volume.
7. "Remit to" address: The Offeror shall submit all volumes of its offer electronically via the Government Point of Entry via email to Ms. Yaynel Yambo at yaynel.c.yambo.civ@us.navy.mil and Robert Edwards at robert.s.edwards42.civ@us.navy.mil.
8. Representations and certifications: See Contractor Responsibility Volume.
9. Acknowledgment solicitation amendments: All amendments issued with signatures to acknowledge terms and conditions of amendments. Acknowledgement of all amendments issued to the solicitation shall be signed, and dated.
10. Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information).
11. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

Offers shall be submitted in volumes as follows:

Volume I - Price

There is no page limit for Volume I submission

Offerors shall submit the following:

1. **Standard Form (SF) 1449.** Blocks 17a, 30a, 30b, and 30c of page one (1) of SF 1449 shall be completed and signed to show the Offeror has read and agrees to comply with all terms, conditions, and instructions provided in the solicitation document.
2. **Price Offer.** The Offeror shall fill in the price schedule and include unit prices. The unit price should be evenly incremented so that it adds up to the total price without rounding past the second digit right of the decimal point for total prices for all contract line items (CLINs). Pricing shall be structured in accordance with the contract line items identified in the SF 1449 bid schedule. Do not price TRAVEL CLINS 0002, 1002, 2002, 3002, 4002 and 5002.

Volume II - Technical Approach

Volume II is limited to 25 pages

Offerors shall demonstrate an understanding of the solicitation requirements by providing the following:

1. Staffing Approach.
2. Personnel Qualifications.

Each technical approach element must provide sufficient evidence that the Offeror has a clear understanding of the solicitation and are able to meet the minimum requirements and qualifications set forth in the PWS.

Volume III - Past Performance

Volume III is limited to 15 pages

The Offeror shall provide a maximum of three (3) relevant past performance references of similar magnitude, scope and complexity to services set forth in the PWS and completed within the past three (3) years prior to the solicitation release date (See Block 8 of the SF1449). If a completed Contractor Performance Assessment Reporting System (CPARS) evaluation is available which meets the requirements identified above, it shall be submitted with the offer.

If a CPARS is not available, then the Offeror shall submit a completed Past Performance Questionnaire (PPQ) (Attachment 1) for each reference submitted. At the PPQ customer/client's request, PPQs may be submitted directly to the Government's point of contact to **Ms. Yaynel Yambo at yaynel.c.yambo.civ@us.navy.mil and Robert Edwards at robert.s.edwards.civ@us.navy.mil** by close of solicitation. Offers shall not incorporate by reference PPQs previously submitted for other solicitations. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation. The Offeror is responsible for providing the PPQ to their references for completion and for ensuring that the PPQ is received by the contracting office by the solicitation closing date and time.

Offerors may submit a combination of delivery orders (DOs), task orders (TOs), technical direction letters (TDLs), and/or technical area tasks (TATs) placed under an Indefinite Delivery type contract or BPA as one of the examples of past performance, however, no more than three (3) total will be reviewed. Each individual example in the combination must meet the requirements listed above.

If offerors submit past performance examples where they served as a subcontractor, they must clearly identify their role as a subcontractor. Additionally, the offeror shall demonstrate that the scope, complexity, and magnitude of the subcontractor's work on the referenced past performance are substantially similar to the requirements outlined in the solicitation.

If no recent (within the past three years prior to solicitation release date), relevant past performance is available the Offeror shall affirmatively state that it possesses no recent or relevant past performance.

Note: An incomplete PPQ may not be evaluated.

Volume IV Contractor Responsibility

There is no page limit for Volume IV submission

1. Representation and Certifications. Offerors shall either complete the following provisions contained in the solicitation OR provide a statement that certification in System for Award Management (SAM) is current, complete, and accurate as of the date of the Offeror's signature, or list any changes as they relate to the following provisions:

FAR 52.212-3

FAR 52.209-5

FAR 52.209-7

FAR 52.209-11

DFARS 252.204-7016

2. No Exception. Include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

3. Limitations on Subcontracting. Offeror shall affirmatively state that they intend to meet the requirements outlined in FAR 52.219-14, Limitations on Subcontracting (Sep 2021) (Deviation 2021-O0008).

4. Financial Letter. A letter from the Offeror's financial institution that indicates that the Offeror has adequate financial resources to perform the contract;

5. Organization. A description of the Offeror organization, accounting, operational controls and lines of authority to make decisions on behalf of the company to meet the requirement.

Note: After the solicitation closing date, the Contracting Officer may require an Offeror to promptly submit additional information to demonstrate the Offeror is responsible.

AWARD NOTICE TO SUCCESSFUL OFFEROR

A written notice of award or acceptance of an Offer will be emailed to the successful Offeror. Before the Offeror's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

Failure to submit all required documentation may render an offer non-responsive and the offer may not be considered for award.

(a) Period for acceptance of offers. Offeror agrees to hold their prices firm for a period of 120 calendar days from date specified for receipt of offers, unless another time period is specified in an amendment to the solicitation.

(b) *Product samples.* Not modified.

(c) *Multiple offers.* The Government IS NOT accepting multiple offers presenting alternative terms and conditions, including alternative line items, or alternative commercial products or commercial services for satisfying the requirements of this solicitation.

(d) *Late submissions, modifications, revisions, and withdrawals of offers.* Not modified.

(e) *Contract award.* Not modified.

(f) *Multiple awards.* The Government WILL NOT accept any item or group of items of an offer. The Government WILL NOT accept quantities less than those specified in the schedule. The Government WILL NOT make an award on any item for a quantity less than the quantity offered, at the unit prices offered.

(g) Availability of requirements documents cited in the solicitation. Not modified.

(h) *Unique entity identifier.* Not modified.

(i) *Reserved.*

(j) *Debriefing.* Not modified.

ATTACHMENTS: The following documents are provided as attachments and are considered part of this solicitation:

Attachment 1: Past Performance Questionnaire

Evaluation - Commercial Products and Commercial Services

Addendum to Evaluation - Commercial Product and Commercial Services

If a completed Contractor Performance Assessment Reporting System (CPARS) evaluation is available which meets the requirements identified above, it shall be submitted with the offer. If a CPARS is not available, then the offeror shall submit a completed Past Performance Questionnaire (PPQ) (Attachment 1) for each reference submitted. PPQs shall be submitted directly to the Government's point of contact, Yaynel Yambo and Robert Edwards, at Yaynel.c.yambo.civ@us.navy.mil and robert.s.edwards42.civ@us.navy.mil by close of solicitation. PPQs shall be signed by the reference. PPQs signed by the offeror will not be considered. As prescribed in 12.301(c), the Contracting Officer may insert a provision substantially as follows:

EVALUATION--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

1. Technical Approach
2. Past Performance
3. Price

Technical capability will be evaluated on an acceptable or unacceptable basis. When combined, technical and past performance are significantly more important than price. If the offeror is found to be technically unacceptable, the offeror will be removed from further award consideration. For those offerors rated Acceptable in Technical Approach, a tradeoff will be conducted considering past performance and price with past performance considered more important than price.

FACTOR ONE - TECHNICAL CAPABILITY

Subfactor 1: Staffing Approach: The offeror shall submit a staffing plan that demonstrates adequate personnel with the necessary skill sets and qualifications to ensure the requirements of PWS Paragraphs 3.2, 3.3, 4.1, 4.2, and 4.3. Proposals that include fewer than 45,760 hours of support would cause mission degradation and will render the proposal Unacceptable. Refer to PWS Paragraph 3.3 and Addendums I, II, and III for further details.

The offeror shall submit an organization chart which identifies all on-site management and instructor positions, the number of personnel assigned and their qualifications for each instructor area. Names of specific individuals are not desired and shall not be provided. If names are submitted, they will be removed prior to evaluation.

Subfactor 2: Personnel Qualifications: Key Personnel: The offeror shall submit resumes for key personnel (Training Master Scheduler) that meet the minimum qualifications of the solicitation and PWS section 4.1.

Evaluation Process:

Initially, the government evaluation team shall evaluate the technical capability proposals at the sub factor level assigning ratings of Acceptable /Unacceptable as defined below in table 1. An overall factor-level rating will then be assigned; any technical capability proposal which is Unacceptable on any of the sub-factors, will be considered Unacceptable overall.

Acceptable (A)	Proposal clearly meets the minimum requirements of the solicitation.
Unacceptable (U)	Proposal does not clearly meet the minimum requirements of the solicitation.

The proposals shall be evaluated against the following sub factors:

Subfactor 1: Staffing Approach: To be rated "Acceptable", the offeror's staffing approach must demonstrate adequate staffing, and sufficient qualifications to support the requirements identified in the PWS Paragraphs 3.2, 3.3, 4.1, 4.2, and 4.3. The evaluation will focus on ALL of the following elements:

- 1) Offeror's plan which describes proposed manning levels and skills/ qualifications mix necessary to ensure all required personnel resources are provided to successfully accomplish all performance requirements on the start date of the performance period;
- 2) An organizational chart which identifies all on-site management and instructor positions and the number of personnel assigned to each instructor course.

Subfactor 2: Personnel Qualifications: Key Personnel: To be acceptable, the offeror must provide resumes for key personnel that clearly meet the minimum requirements of the solicitation and PWS section 4.1.

FACTOR TWO - PAST PERFORMANCE

The offeror shall provide a maximum of three (3) past performance references of similar magnitude scope, and complexity to services set forth in the PWS and completed within the past three (3) years prior to the solicitation release date (See Block 8 of the SF1449).

If a completed Contractor Performance Assessment Reporting System (CPARS) evaluation is available which meets the requirements identified above, it shall be submitted with the offer. If a CPARS is not available, then the offeror shall submit a completed Past Performance Questionnaire (PPQ) (Attachment 1) for each reference submitted. PPQs shall be submitted directly to the Government's point of contact, Yaynel Yambo and Robert Edwards, at Yaynel.c.yambo.civ@us.navy.mil and robert.s.edwards42.civ@us.navy.mil by close of solicitation. PPQs shall be signed by the reference. PPQs signed by the offeror will not be considered.

Offerors shall not incorporate by reference PPQs submitted under other solicitations. However, the Government reserves the right to consider other sources of past performance information at its discretion, including CPARS, previously submitted PPQs, and information obtained from program offices. The offeror is responsible for providing the PPQ to their references for completion and for ensuring that the PPQ is signed by the reference and received by the contracting office by the solicitation closing date and time.

If no recent (within the past three years prior to solicitation release date), relevant past performance is available the offeror shall affirmatively state that it possesses no recent or relevant past performance.

Past performance as the prime offeror will be given greater weight in the evaluation than subcontractor performance. If subcontractor performance is submitted, the offeror must clearly identify as it relates to scope, magnitude and complexity:

1. **The scope and percentage of work performed by the offeror as a subcontractor,**
2. **The dollar value attributable to the work performed by the offeror as a subcontractor, and**
3. **The specific functions or tasks completed by the offeror as a subcontractor.**

Note: An incomplete PPQ, or a PPQ not signed by the reference, will not be considered in the evaluation. No more than three (3) offeror submitted past performance references (CPARS/PPQ) will be evaluated.

A copy of the blank Past Performance Questionnaire to be used for requesting client references is included in Attachment 1.

Evaluation Process:

Factor 2 will be assigned a Performance Confidence Assessment rating from Past Performance Confidence Assessment Ratings Table based on the offeror's overall record of recency, relevancy, rating for quality of services of past performance. The purpose of the past performance evaluation is to allow the Government to assess the offeror's ability to perform the effort described in this RFP, based on the quality of the offeror's demonstrated recent and relevant past performance.

- (i) The first part of the evaluation is to evaluate the recency of the offeror's past performance. Past performance will be considered recent if the work has been performed within three (3) years before the solicitation release date.
- (ii) The second part of the evaluation is to evaluate the relevance of the offeror's past performance. To be considered relevant, the offeror's past performance information will be assessed on the similarity of the scope, magnitude, and complexity of the offeror's prior or ongoing contracts to this solicitation's performance requirements. For purposes of the past performance relevancy evaluation, scope, magnitude, and complexity are defined as follows:

Scope - Past performance will be considered relevant if the effort involved providing Instructor Support services to meet training requirements for basic and/or advanced construction training provided to military personnel in the Army, Air Force, or Navy in construction occupational fields.

Magnitude - Past performance will be considered relevant if the effort involved managing instructor support services and related administrative functions with an annual contract value of \$2 million or greater. (Offerors shall clearly identify the annualized dollar value of the referenced effort.)

Complexity - Past performance will be considered relevant if the effort involved providing instructor support services in the functional areas of performance required by this solicitation, to include delivery of classroom and/or field training to DoD military members in basic and advanced construction training programs.

Past Performance Relevancy Ratings Table	
Rating	Definition
Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

The next aspect of past performance evaluation is to establish the overall quality of the Offeror's past performance. The past performance evaluation conducted does not establish, create, or change the Offeror's existing record and history on past contracts; rather, the past performance evaluation process gathers information from customers on how well the Offeror performed those past contracts. The Government will review all past performance information collected and determine the quality of the Offeror's performance, general trends, and usefulness of the information and incorporate these into the performance confidence assessment. A separate quality assessment rating is not performed; rather, the past performance confidence assessment rating is based on the Offeror's overall record of recency, relevancy, and quality of performance.

A review of all past performance, general trends, and usefulness of the information will be incorporated into an overall performance confidence assessment rating. After each reference is given a relevancy rating, quality will be addressed by examining the related CPARS /PPQ, but not rated. The past performance confidence assessment rating is based on the offeror's overall record of recency, relevancy, and rating for quality of services of performance and will be rated as stated below:

Past Performance Confidence Assessment Ratings Table

Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

If an offeror has no recent/relevant past performance record, or if an offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on Factor 2. In this case, the offeror's past performance will be assigned a rating of 'Neutral Confidence.' Past performance ratings of 'Substantial Confidence' or 'Satisfactory Confidence' will be considered more favorably than a "Neutral Confidence" rating in conducting the trade-off.

FACTOR THREE - PRICE

An offeror's proposed prices will be determined by multiplying the quantities identified in the Schedule by the proposed unit price for each Contract Line Item Number (CLIN) to confirm the extended amount for each. Offerors shall ensure each CLIN is priced.

The Government will evaluate price to determine the following:

- Completeness** - The proposal includes prices for all CLINs, and option periods. Failure to price a CLIN may render the proposal unacceptable. Do not price travel CLIN.
- Accuracy and Mathematical Correctness** - Proposed unit prices and extended amounts will be reviewed for consistency, accuracy, and freedom from calculation errors. In the event of a discrepancy, unit prices will govern.
- Reasonableness** - Prices will be evaluated in accordance with FAR 15.404-1(b)(2) to determine whether they are fair and reasonable. The Government may use one or more of the price analysis techniques set forth in FAR 15.404-1(b)(2), including but not limited to: comparison of proposed prices received in response to the solicitation, comparison with historical prices paid, comparison with independent Government estimates (IGEs), and comparison with published price lists.
- Total Evaluated Price** - The Government will calculate the total evaluated price by summing all CLINs, inclusive of all option periods, to determine the basis for evaluation and award.

Price will not be assigned an adjectival rating but will be considered in the overall best value tradeoff in accordance with FAR 15.101-1.

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End)

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.217-5	Evaluation of Options.	Jul 1990		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems###Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.212-3	Offeror Representations and Certifications-Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)	(May 2024)	Deviation 2025-O0004	(Mar 2025)
----------	--	------------	-----------------------------	------------

OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025)
(DEVIATION 2025-O0003 AND 2025-O0004)

(a) *Definitions.* As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;

- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended."Sensitive technology"-

Sensitive technology-

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(2) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
==	==	==
==	==	==
==	==	==

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____

---	---

[List as necessary]

(4) *Trade Agreements Certificate.* (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689).* (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin
==	==
==	==

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) ☐

(ii) ☐

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

- ☐ Corporate entity (tax-exempt);
- ☐ Government entity (Federal, State, or local);
- ☐ Foreign government;
- ☐ International organization per 26 CFR1.6049-4;
- ☐ Other ____.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name ____.

TIN ____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that-

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: _____(or mark "Unknown").

Predecessor legal name: _____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) [Reserved]

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation*. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation*. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (Dec 2023)

FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) *Definitions*. As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) *Prohibition*. Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) *Procedures*.

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures*. The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services. (Alternate I) (May 2024) Alternate I (Feb 2024)

Alternate I (FEB 2024). As prescribed in 12.301 (b)(2), add the following paragraph (c)(12) to the basic provision:

(12) (Complete if the offeror has represented itself as disadvantaged in paragraph (c)(5) of this provision.)

- ☐ Black American.
- ☐ Hispanic American.
- ☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).
- ☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).
- ☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).
- ☐ Individual/concern, other than one of the preceding.

52.233-2 Service of Protest. (Sep 2006)

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from NAVSUP FLC Jacksonville Contracting 110 Yorktown Ave., 3rd Floor Jacksonville, FL 32212-0097.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/DFARS> Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

**PERFORMANCE WORK STATEMENT
NAVAL CONSTRUCTION TRAINING CENTER (NCTC)
GULFPORT, MS.
CONSTRUCTION TECHNICAL INSTRUCTORS AND STAFF SUPPORT**

1.0 SCOPE

The Naval Construction Training Center (NCTC) Gulfport, Mississippi is acquiring Instructor Support Services to carry out the training requirements for basic construction training to military personnel in the Army, Air Force and Navy assigned to construction occupational fields. Support is also required to provide advance construction training to Navy Seabee personnel. The number of specific courses, course duration, start dates, curriculum, class size, and the number of instructors required to adequately meet NCTC Gulfport mission is determined by the coordinated effort of NCTC Gulfport, Center for Seabees and Facilities Engineering (CSFE), and Naval Education and Training Command (NETC) and approved by the Chief of Naval Operations (CNO). The Contractor's sole responsibility is to provide the number of fully qualified instructors approved to meet the training requirements and to ensure the training requirements are fully met as prescribed by NCTC Gulfport. This training is continuous throughout the year with overlapping classes, which are staggered in order to meet scheduled training requirements.

2.0 BACKGROUND

The NCTC Gulfport is a shore activity in an active operating status. An Echelon V command, NCTC's Commanding Officer Reports to CSFE, NETC, and ultimately to the CNO. Respectively, NCTC Gulfport is subject to the regional area coordination authority of the Commanding Officer, Naval Construction Battalion Center (NCBC), Gulfport, on which it is located. NCTC Gulfport and NCTC Port Hueneme, California are the (2) two NCTC locations that provide basic construction training to construction Military Occupation Specialties (MOS's) in the Army and Air Force and basic and advance training for Navy Seabee personnel. Instructor support is provided by contract personnel for NCTC Gulfport, Mississippi.

3.0 PERFORMANCE WORK STATEMENTS

3.0.1 TRAINING COURSE DIRECTIVES: The following Catalog of Navy Training Courses (CANTRAC) Training Course Control Documents shall serve as directives for each course listed. In the event of a conflict between documents referenced herein and the contents of this PWS, the contents of this PWS take precedence. Nothing in this PWS, however, supersedes applicable laws and regulations, unless a specific exemption has been obtained.

- 3.2.1 INTERSERVICE BUILDER APPRENTICE TRAINING (BU-A NAVY), A-710-0010
- 3.2.2 STEELWORKER CLASS A USN BLOCK 0, A-711-0005
- 3.2.3 STEELWORKER CLASS A USN BLOCK 1, A-711-0006
- 3.2.4 STEELWORKER CLASS A USN, A-711-00XX (course is currently being developed to replace Steelworker Class A USN Block 0 A-711-0005 and Steelworker Class A USN Block 1, A-711-0006)
- 3.2.5 CONSTRUCTION PROJECT ESTIMATING, A-412-0028
- 3.2.6 CONSTRUCTION PROJECT PLANNING AND SCHEDULING, A-412-0029
- 3.2.7 CONSTRUCTION PROJECT EXECUTION, A-412-0030
- 3.2.8 CONCRETE AND MASONRY, A-710-0055
- 3.2.9 STRUCTURE FRAMING, A-710-0054
- 3.2.10 INTERIOR AND EXTERIOR FINISHES, A-710-0056
- 3.2.11 HEAVY CONSTRUCTION I, A-710-0044
- 3.2.12 HEAVY CONSTRUCTION II, A-710-0045
- 3.2.13 POWDER ACTUATED TOOLS, A-710-0038
- 3.2.14 WELDING SUPERVISOR, A-711-0031
- 3.2.15 SHEETMETAL WORK, A-711-0026
- 3.2.16 STEEL REINFORCING, A-711-0027
- 3.2.17 GAS CUTTING AND WELDING, A-711-0024

- 3.2.18 METAL FABRICATION AND LAYOUT, A-711-0025
- 3.2.19 ARC WELDING (STRUCTURAL), A-711-0022
- 3.2.20 ARC WELDING (PIPE), A-711-0023
- 3.2.21 SHIELDED INERT GAS WELDING, A-711-0002
- 3.2.22 TRANSPORTATION OPERATIONS, A-730-0046
- 3.2.23 EARTHWORK OPERATIONS, A-730-0047
- 3.2.24 PAVEMENTS, A-730-0048
- 3.2.25 CONSTRUCTION INSPECTOR, A-710-0022
- 3.2.26 TOOL AND EQUIPMENT MAINTENANCE TECHNICIAN, A-712-0010
- 3.2.27 INTERIOR WIRING, A-721-0001
- 3.2.28 CABLE SPLICING, A-721-0023
- 3.2.29 ADVANCED BASE POWER PLANT MAINTENANCE, A-721-0024
- 3.2.30 ELECTRIC MOTORS AND CONTROLS, A-721-0032
- 3.2.31 ELECTRICAL THEORY, A-721-0034
- 3.2.32 POWER TRAIN AND CHASSIS, A-610-0048
- 3.2.33 HYDRAULIC & PNEUMATIC SYSTEMS, A-610-0050
- 3.2.34 ENGINES, FUEL, AND ELECTRICAL SYSTEMS, A-610-0051
- 3.2.35 AUTOMOTIVE A/C, A-610-0052
- 3.2.36 ADVANCED DIAGNOSTICS AND SHOP MANAGEMENT, A-610-0053

3.0.2 TRAINING REQUIREMENTS

GENERAL: The Contractor shall provide fully qualified instructors who demonstrate experience in the areas listed in the Performance Work Statement (PWS). In the event an instructor(s) has to be replaced, the replacement shall be as qualified or more qualified than the instructor(s) being replaced. The Government COR/ACOR reserves the right to review resumes for any instructor or Training Master Scheduler replacement.

3.0.2 TRAINING ENVIRONMENT: The services required hereunder shall be performed utilizing both of the following specific instructional environments (these training environments are provided and maintained by the Government).

- Legacy Environment (Group-Paced, Instructor-Led). This is traditional classroom instruction in a Navy resident schoolhouse environment. The contractor shall provide on-site instructors to teach the course.
- Legacy Lab Environment (Builder Projects, Instructor-Led). Exercises are conducted on-site builder projects in either an indoor lab or outside site project. The contractor shall provide on-site instructors for each project exercise.

3.0.3 TRAINING SCHEDULES: Training shall normally be conducted eight (8) hours a day, five (5) days a week for the length of the course. However, the daily activity may extend beyond 8-hours if required to meet all training objectives outlined in the curriculum. Student remediation may be required and should be considered beyond the normal 8-hour training time for each class. During the execution of the class schedule where holidays or other events impact the expeditious movement of students through the training pipeline, the Naval Construction Training Center (NCTC) Site Director may extend the number of daily training hours to compensate, but not to exceed 40 hours per week per instructor.

3.0.4 CLASS CONVENINGS: NCTC Gulfport will establish class schedules. Any changes to class/course schedules will be established by NCTC Gulfport and forwarded to the Contractor Training Master Scheduler for implementation.

3.0.5 CHANGES TO CURRICULUM: Only training materials and lesson plans promulgated by CSFE shall be used in training delivery. It is recognized that certain portions of the course may become outdated based on a number of external factors. The Contractor's instructors are encouraged to identify and submit recommendations to the Contractor's Training Master Scheduler who recommends, makes changes and revisions to curriculum and submits such recommended changes and revisions to the NCTC Gulfport Site Director. However, the content of the instructional material shall not be modified until formally approved and implemented by CSFE. Any such Contractor recommendations shall be at no additional cost to the Government and shall become the property of the Government.

3.0.6 ACADEMIC STANDARDS: All instructors shall adhere to and maintain academic standards (e.g., course grading criteria established by NCTC Gulfport) in accordance with assessment standards for the course. If the student(s) have academic problems, the instructor shall provide remediation to improve their course performance. Academic standards for each course can be found in the testing section of the course curriculum.

3.0.7 CONTRACTOR RELATIONSHIP TO MILITARY AUTHORITIES: Contract instructors shall have the authority and are empowered to maintain their classrooms in an orderly and professional atmosphere.

3.0.7.1 COMPLAINTS AGAINST STUDENTS: Students are expected to conduct themselves in a professional and military manner. Students who fail to conduct themselves with the proper classroom decorum shall be cautioned by the contract instructor; if the inappropriate conduct continues, the student shall be referred by the contract instructor to the NCTC Site Director. In the event of any formal military action against students under their tutelage, contract instructors may be requested to provide written statements to or appear in person at Non-Judicial Punishment (NJP) or military Courts-Martial proceedings. Under no circumstance is a contract instructor to take disciplinary action against any student(s).

3.0.7.2 SITE MANAGEMENT: The Training Master Scheduler shall be designated as the Contractor Site Lead. In addition to performing duties outlined in paragraph 3.1, the individual shall provide overall management, supervision, and coordination of this contract and shall act as the local point of contact with the Government. The Contractor Site Lead shall have full authority to act for the Contractor on all matters relating to daily operations of the contract. The Contractor shall furnish, in writing, to the NCTC Gulfport Business Manager the name and contact information of the Contractor Site Lead no later than (15) calendar days after contract award. Providing a Contractor Site Lead will be at no additional cost to the Government.

3.1 KEY PERSONNEL: Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in a best value procurement, an offer can be rejected if it does not have a firm commitment from the person(s) that is (are) listed in the proposal. However, in the event that a person, previously committed to perform as key personnel under the contract becomes unavailable before award (or prior to the start of performance under the contract), the qualifications listed in each individual proposed key personnel resume, not the specific individual, are the materially relevant aspects of the proposed key personnel partially forming the basis of award. Therefore, even if a proposed key individual becomes unavailable to the Contractor between proposal submission and award, the Government will evaluate and make its award decision based on the qualifications listed on the proposed resume(s). When the Government awards a contract under those circumstances, the Government will require the awardee to use the qualifications listed on the relevant proposed key personnel resume as the basis for replacing the individual during contract performance. The offeror shall make no substitution of key personnel without prior notification to and concurrence of the Government COR. The prime Contractor is responsible for performance of all subcontractors. The following personnel are considered key personnel by the Government:

INSTRUCTOR SUPPORT SERVICES (TRAINING MASTER SCHEDULER):

The Training Master Scheduler is considered key personnel by the Government. The Contractor shall provide a Training Master Scheduler to coordinate all training conducted by the Naval Construction Training Center Gulfport on site and scheduled off-site training. The Contractor shall coordinate input from the Center for Seabees and Facilities Engineering (CSFE) and Naval Education and Training Command (NETC) regarding the number of classes, area of instruction, class size and schedule dates for proposed classes. The Contractor shall make all arrangements for classroom availability and assignments, insure required training aids are made available for each class, coordinate and monitor all classrooms and laboratory facilities assigned to NCTC Gulfport, provide student rosters to assigned instructors.

The TRAINING MASTER SCHEDULER shall serve as the single point of contact for all matters pertaining to “A” (Apprentice Training), C1 (Advance specialized skill training), D1 (Individual, not rating-specific professional development functional skill training), F1 (Individual skill or rating-specific functional training), and G1 (Pipeline skill progression Training) all related courses associated with NETC Seabee basic, intermediate and advanced training.

- 3.1.1** Respond to all correspondence pertaining to course issues. Receive phone calls and visitors, answer inquiries concerning scheduling courses.
- 3.1.2** Ensure the essential NITRAS (Navy Integrated Training Resources and Administration System), CETARS (Corporate Enterprise Training Activity Resource Systems [US Navy]) and Master Course Reference File (Seabee University/Course Schedule) are current and in accordance with NCTC, NETC and CSFE directives.
- 3.1.3** Draft and submit schedules to be used in the execution of Naval Technical Training conducted at NCTC Gulfport and off-site facilities.
- 3.1.4** Maintain records and data pertaining to all course of instruction at NCTC Gulfport.
- 3.1.5** Schedule and conduct weekly scheduling meetings between NCTC Gulfport, Schoolhouse Departments, D1 and F1 course coordinators, the Naval Construction Group Two (NCG2) and tenant Naval Mobile Construction Battalion (NMCB) training personnel.
- 3.1.6** Develop and submit for approval and promulgation weekly C1, D1, F1, and G1 school course schedules.
- 3.1.7** Identify scheduling conflicts, provide coordinated recommendations for approval and implement resolutions to scheduling issues in order to facilitate courses to the maximum extent.
- 3.1.8** Inform Government training department of, and propose resolutions to, issues arising from “A”, C1, D1, F1, and G1 school course completion packages.
- 3.1.9** Assist the Business/Financial Management Department Head (N8) with matters pertaining to “A”, C1, D1, F1, and G1 scheduling and school costs associated with courses taught, Equipment Replacement Plans (ERPs) and information on schedules for reimbursable billings.
- 3.1.10** Provide Command data for facilities level utilization and scheduling briefs pertaining to school courses.
- 3.1.11** Ensure monthly Metrics brief is updated and ready for presentation.
- 3.1.12** Coordinate/liase with NCTC Gulfport Company Commanders, Course Managers, NCG2 and tenant command training personnel for approval on matters relating to Naval technical training schedules and opportunities.
- 3.1.13** Provide advance notice of technical training opportunities to NCTC Gulfport Company Commanders, Course Managers, NCG2 and tenant command training personnel of any approved changes to establish schedules to facilitate continued coordination and minimize discrepancies in student attendance.
- 3.1.14** Class scheduling is determined by the number of courses scheduled to convene throughout the fiscal year. Additional classes may be scheduled and courses added based on inter-service training requirements. All class schedules shall be submitted as a draft copy for review and approval by the onsite immediate supervisor.
- 3.1.15** The Contractor shall manage class quota request and course enrollments for applicable C, D, F, and G courses, utilizing the enterprise Navy Training Reservation System (eNTRS). The Contractor shall ensure quotas/reservations are in compliance with course schedules, training instructions, and directives.

3.1.16 The Contractor shall coordinate C and G course quotas requirements based on unit request with the CSFE Production Line Manager (N53) to manage quotas. The Contractor shall coordinate/liaison all quota conflicts and provide recommended resolutions to help maximize training opportunities.

HISTORICAL WORK DATA: FY24 historical data shows 155 classes were scheduled at NCTC Gulfport.

3.2 INSTRUCTOR SUPPORT SERVICES: The Contractor shall provide qualified Inter-Service Builder Apprentice Training (BU-A) Instructors and qualified Advanced Instructors as outlined in paragraph 3.2.1 through 3.2.36 to meet the training requirements and schedule as determined by NCTC Gulfport under authority of CSFE, NETC and the CNO. Any Contractor assigned to serve as an alternate and/or replacement shall be as qualified as the Contractor they are replacing. Due to the high visibility of the NCTC training program, Contractor deviations from the labor mix of instructors deemed necessary by the command to meet the training requirements and schedule shall be justified in the management plan in detail to the satisfaction of the Commanding Officer NCTC Gulfport. It is required that no billet within the organization remains vacant for a period exceeding two (2) weeks. The intent of this provision is to ensure continuity of operations and maintain effective staffing levels. The organization will implement procedures to monitor the status of all vacancies and take corrective actions to prevent vacancies from extending beyond the two-week threshold. Regular updates on vacancy status and recruitment progress will be provided to the COR to ensure timely resolution. The Government COR/ACOR reserves the right to review resumes for any instructor or Training Master Scheduler replacement.

Course descriptions are provided in paragraphs 3.2.1 through 3.2.36. These are the courses scheduled for FY26.

3.2.1 INTER-SERVICE BUILDER APPRENTICE TRAINING (BU-A NAVY) A-710-0010:

Contractor shall provide qualified instructors to provide training in the basic technical knowledge and basic practical skills in preparation for immediate usefulness as a Structural Apprentice for all Navy Seabee, Army and Air Force personnel requiring basic apprenticeship training. Contractor shall provide instruction in the use of builder tools. Contractor shall provide instruction in the selection of equipment and materials used in manufacturing woodshop projects; erecting light frame structures, suspended ceiling tile, hot tar roofing, three tab composition shingles, concrete masonry structure, concrete forms, windows to doorjambes and casting to scope. Contractor shall provide instruction in installing, finishing drywall, installing door jambs with casing, installing baseboard and molding, installing composition floor tile and ceramic tile. Contractor shall provide instruction in the preparation and application of paint. Contractor shall provide instruction in mixing, transporting, placing and finishing concrete.

3.2.2 STEELWORKER CLASS "A" USN BLOCK 0 A-711-0005:

Contractor shall provide qualified instructor personnel to provide apprentice level training in construction mathematics, blueprint reading and basic layout, gas welding equipment, gas cutting, gas welding and brazing, silver brazing, vertical and flat arc welding, reinforcing steel, and fiber line.

3.2.3 STEELWORKER CLASS "A" USN BLOCK 1 A-711-0006:

Contractor shall provide qualified instructor personnel to provide apprentice level training in basic sheet metal layout, pattern development, fabrication, and pre-engineered buildings including installation and maintenance of doors.

3.2.4 STEELWORKER CLASS "A" USN A-711-00XX:

Contractor shall provide qualified instructor personnel to provide apprentice level training in construction welding and related skills. (this course is currently under development and will replace both the SW Class A Block 0 and Block 1 courses. Updated data will be provided when it becomes available.)

3.2.5 CONSTRUCTION PROJECT ESTIMATING A-412-0028:

Contractor shall provide qualified instructor personnel to provide selected personnel with the knowledge and skills necessary to plan, estimate, schedule, and report on construction projects at existing Naval bases, advance bases and selected off- base sites during peacetime and contingency operations in accordance with the Construction Estimating, NTRP 4-04.2.3 and Seabee Crew Leader Handbook.

3.2.6 CONSTRUCTION PROJECT PLANNING AND SCHEDULING A-412-0029:

Contractor shall provide qualified instructor personnel to provide training for Naval Construction Force (NCF) personnel E4 and E5, the basic level III Construction management knowledge and skills necessary to perform as a crew leader on an NCF construction project, specifically duties related to planning and development of the project package, and tools for managing the day-to-day NCF construction activities.

3.2.7 CONSTRUCTION PROJECT EXECUTION A-412-0030:

Contractor shall provide qualified instructor personnel to provide construction management training to Naval Construction Force (NCF) personnel E6 and above, Level II Construction Management knowledge and skills necessary to perform as a construction supervisor on one or more NCF construction projects, specifically the management and oversight duties related to project package, resource leveling, reporting, and interfacing with other agencies.

3.2.8 CONCRETE AND MASONRY A-710-0055:

Contractor shall provide qualified instructor personnel to provide instruction in concrete and masonry construction principles and techniques to include site layout, forming “D” reinforcement placement and finishing, construction using concrete masonry units (CMU) block, lay-out and estimating.

3.2.9 STRUCTURE FRAMING A-710-0054 COURSE OF INSTRUCTION:

Contractor shall provide qualified instructor personnel to provide in-depth instruction in Rough Carpentry framing principles and techniques that cover the following areas; floors, walls, roof frames and trusses.

3.2.10 INTERIOR AND EXTERIOR FINISHES A-710-0056 :

Contractor shall provide qualified instructor personnel to provide in-depth instruction in interior and exterior finishes that incorporate the following areas; drywall, doors and windows, painting, ceilings, exterior finishes, stairs, interior trim and roofing applications.

3.2.11 HEAVY CONSTRUCTION I A-710-0044:

Contractor shall provide qualified instructor personnel to provide in-depth instruction to builders E-3 and above in the knowledge and skills required to perform Heavy Timber Bridge construction. Instruction includes care for and use of an Engineer’s Level, develop sketches, layout, assemble and erect Heavy Timber construction projects using tools, equipment and materials from the Bridge and Dock Builders Tool Kit 80041.

3.2.12 HEAVY CONSTRUCTION II A-710-0045:

Contractor shall provide qualified instructor personnel to provide in-depth instruction to builders E-2 to E-6 in the basic knowledge and skills required to plan and estimate materials, direct and assist in the safe conduct of NCF pile-driving operations using common pile-driving rigs using all types of piles. Instruction shall include appropriate High-Risk safety training. Prepare simple drawings and construction specifications. Make accurate estimates of materials, equipment, and manpower requirements using the NAVFAC P-405. Establish and maintain a standard pile-driving log. Observe pile-driving operations.

3.2.13 POWDER ACTUATED TOOLS A-710-0038:

Contractor shall provide qualified instructor personnel to provide in-depth instruction to E-1 and above personnel leading to a Hilti Operators License. Instruction shall include the following in accordance with approved Hilti technical and tool operation manuals, safety, operations, cleaning and preventive maintenance on Hilti low velocity powder actuated tools to include only the 451 and 460 powder actuated tools.

3.2.14 WELDING SUPERVISOR A-711-0031:

Contractor shall provide qualified instructor personnel to provide in-depth instruction for E-5 and above personnel. The course covers the necessary knowledge and skills to perform as a Welding Supervisor. Training includes review of management systems for welding supervisors, requirements of welds, detailed descriptions of welding processes, welding metallurgy, welding symbols, welding instructions, welding economics, the application of welding standards, welding inspection, health and safety, weld reports and records.

3.2.15 SHEETMETAL WORK A-711-0026:

Contractor shall provide qualified instructor personnel to provide in-depth instruction for steelworkers E4 through E6. Instruction shall provide steelworker trainees with the knowledge and skills required for pattern development

and lay-out for sheet metal ductwork, to include square to round transitions, intricate and compound angles; 3 piece 90 degree elbow fabrication; lay-out and cut selected ductwork transitions to include elbows, branch connections, “T” and “Y” joints and end caps for pre-fabricated and one-off sheet metal ductwork pieces.

3.2.16 STEEL REINFORCING A-711-0027:

Contractor shall provide qualified instructor personnel to provide in-depth instruction to Steelworkers E4 through E6. Instruction shall provide steelworker trainees with the knowledge and skills necessary to understand and interpret construction prints and specifications, conduct material estimating of reinforcing steel from construction prints, create reinforcing steel bend schedules, and provide skills in cutting, bending, tying, and placing reinforcing steel. In addition, the trainee will utilize hand and power tools to cut and bend reinforcing steel to construction specifications. This course is a module of the Steelworker (SW) Advanced Pipeline (A-711-0030).

3.2.17 GAS CUTTING AND WELDING A-711-0024:

Contractor shall provide qualified instructor personnel to provide in-depth instruction to Steelworkers E4 through E6. Instruction shall provide the knowledge and skills to Steelworkers to perform Oxy-acetylene Brazing, Cutting and Welding (OAW) on brass, copper and mild carbon steel given construction prints and specifications; equipment set-up; material selection and preparation; position welding to include horizontal, vertical and overhead; types of welds to include square groove butt, single “V” groove and fillet. This course is a module of Steelworkers (SW) Advance Pipeline (A-711-0030).

3.2.18 METAL FABRICATION AND LAYOUT A-711-0025:

Contractor shall provide qualified instructor personnel to provide in-depth instruction to Steelworkers E4 through E6. Instruction shall provide the knowledge and skills to Steelworkers in pipe-lay-out with steel squares, calculate welding offsets, use of pipe lay-out tools such as a contour marker, centering head, magnetic pipe levels and prefabricated pipe wrap-around; layout and cut selected pipe transitions to include elbows, branch connections, “T” and “Y” joints and end caps on mild steel pipe. This course is a module of Steelworker (SW) Advanced Pipeline (A-711-0030).

3.2.19 ARC WELDING (STRUCTURAL) A-711-0022:

Contractor shall provide qualified instructor personnel to provide in-depth instruction to Steelworkers E4 through E6. Instruction shall provide the knowledge and skills to Steelworkers to perform Shielded Metal Arc Welding (SMAW) on structural steel given construction prints and specifications; equipment set-up; material selection and preparation; position welding to include horizontal, vertical and overhead; types of welds to include square groove butt, single “V” groove and fillet. This course is a module of Steelworker (SW) Advanced Pipeline (A-711-0030).

3.2.20 ARC WELDING (PIPE) A-711-0023:

Contractor shall provide qualified instructor personnel to provide in-depth instruction to Steelworkers E4 through E6. Instruction shall provide the knowledge and skills to Steelworkers to perform Shielded Metal Arc Welding (SMAW) on structural steel pipe given construction prints and specifications; equipment set-up; material selection and preparation; position welding to include horizontal, vertical and overhead; types of welds to include square groove butt, single “V” groove and fillet. This course is a module of Steelworker (SW) Advanced Pipeline (A-711-0030).

3.2.21 SHIELDED INERT GAS WELDING A-711-0002:

Contractor shall provide qualified instructor personnel to provide in-depth instruction to Steelworkers E4 through E6. Instruction shall provide the knowledge and skills necessary to identify, set-up, and maintain all items in the NMCB Combination Electric Arc Inert-Gas Welding Kit, perform gas metal arc and gas tungsten arc welding of ferrous and non-ferrous metals up to and including 3/8-inch thickness, including selection of welding wire and method. This is a module of Steelworker (SW) Advanced Pipeline (A-711-0030).

3.2.22 TRANSPORTATION OPERATIONS A-730-0046:

Contractor shall provide qualified instructor personnel to provide Equipment Operator personnel the advanced technical training to perform Transportation Supervisor duties, transport hazardous materials, plan line hauls, and operate manual truck- tractors using technical references, in normal field conditions.

3.2.23 EARTHWORK OPERATIONS A-730-0047:

Contractor shall provide qualified instructor personnel to provide Equipment Operator personnel the advanced

technical training to utilize geographic information systems to perform horizontal construction, trenching and road construction and maintenance using technical references, in normal field conditions.

3.2.24 PAVEMENTS A-730-0048:

Contractor shall provide qualified instructor personnel to provide Equipment Operator personnel the advanced technical training to safely perform soil stabilization and asphalt operations in normal field conditions.

3.2.25 CONSTRUCTION INSPECTOR A-710-0022:

Contractor shall provide qualified instructor personnel to provide personnel with the knowledge and skill factors to review and analyze project construction drawings and specifications and prepare a Construction Inspection Plan including a checklist of inspection points during critical phases of construction and installation. Verify that all materials and/or equipment ordered meet specifications and verify their conformance to those specifications upon receipt. Inspect all phases of construction and installation, including civil, architectural and structural, electrical and mechanical, for compliance with drawings, specification and acceptable safe operating, installation and construction practices. Coordinate and observe specified tests on materials, electrical and mechanical systems (including operational tests on installed equipment) and ensures the contractor performs quality control tests on such items as sub base materials, aggregates and cementations for binding and on related mixes before, during and after installation. Upon receipt of all test results, the inspector analyzes the results for compliance with given specifications, prepares logs, records and reports on all inspections and tests.

3.2.26 TOOL AND EQUIPMENT MAINTENANCE TECHNICIAN A-712-0010:

Contractor shall provide qualified instructor personnel to provide advanced technical training in the installation, repair and maintenance of construction tools and equipment. To provide technical training in the installation, repair and maintenance of carpenter shop equipment, blade reconditioning equipment, portable, power, and hand tools. To provide instruction in procedures for establishing preventive maintenance schedules, set up and maintenance of manufacturer's and technical file, of recommended maintenance and operating procedures for construction battalion central tool rooms.

3.2.27 INTERIOR WIRING A-721-0001:

Contractor shall provide qualified instructor personnel to provide advanced technical training in the technical knowledge and practical skills necessary for a Construction Electrician to utilize the National Electric Code (NEC), installation of explosion proof fixtures and devices, installation of photocells, installation of thermostats, utilization of the fish tape, conductor installation system, utilization of the heavy duty cable puller, threading and bending large conduits.

3.2.28 CABLE SPLICING A-721-0023:

Contractor shall provide qualified instructor personnel to provide advanced instruction on the techniques and procedures for joining power cable employing straight and branched splices; termination and dead ends, testing and fault finding of cable system. Splice underground and aerial communications cable including cable terminations. Construct bridge and straight splices in plastic sheathed communication cable. Locate faults using appropriate equipment, techniques and safety precautions. Splice and terminate fiber optic cable with mechanical and fusion splices. Use optical time-domain reflectometer (OTDR) and power meter for testing and fault finding.

3.2.29 ADVANCED BASE POWER PLANT MAINTENANCE A-721-0024:

Contractor shall provide qualified instructor personnel to provide advanced instruction on the installation procedures, operation of an Advanced Base Power Plant in single and parallel operation. Maintenance and troubleshooting of Advanced Base Power Plants and associated equipment, is also covered.

3.2.30 ELECTRIC MOTORS AND CONTROLS A-721-0032:

Contractor shall provide qualified instructor personnel to provide advanced instruction on wiring motor controllers for auto transformer, resistance, and star-delta starting. Perform technical maintenance to include coils, relays, contacts, and switches. Establish a preventive maintenance program.

3.2.31 ELECTRICAL THEORY A-721-0034:

Contractor shall provide qualified instructor personnel to provide advanced instruction on the technical knowledge and practical skills necessary for assignment as an electrical crew supervisor. Electrical theory, the installation,

maintenance, and troubleshooting of solid-state devices in peacetime and contingency operations under limited supervision.

3.2.32 POWER TRAIN AND CHASSIS A-610-0048:

Contractor shall provide qualified instructor personnel to provide advanced instruction on the disassemble, clean, repair, adjust, and assemble standard transmissions, transfer cases, power take-off units, drive shafts, differentials, front drive axels, track-chains, pivot brakes, final drives, sprockets, idlers, rollers, and track pads.

3.2.33 HYDRAULIC & PNEUMATIC SYSTEMS A-610-0050:

Contractor shall provide qualified instructor personnel to provide advanced instruction on construct and operate a hydrostatic system using components common to a typical hydraulic system. Assemble a hydraulic hose and fitting assembly and test under normal working pressures; connect and operate a flow meter to determine hydraulic system problems, troubleshoot and operate hydraulic system using logical troubleshooting sequence. Use basic knowledge to test electro hydraulic valves.

3.2.34 ENGINES, FUEL, AND ELECTRICAL SYSTEMS A-610-0051:

Contractor shall provide qualified instructor personnel to provide advanced instruction on troubleshoot, analyze, and isolate diesel fuel system malfunctions on various types of fuel systems. Perform minor and major adjustments to fuel system components consisting of setting racks, governors, and timing fuel pumps to engines; adjust engine speeds, both minimum and maximum; adjust starting valve linkage and any other components that affect engine performance. Take record, and evaluate compression readings. Disassemble, inspect, repair, assemble, test and adjust diesel fuel system components (including mechanical and hydraulic governors) in accordance with manufacturer's specifications. Test, diagnose, charge and repair batteries. Read and interpret equipment electrical diagrams and schematics. Troubleshoot and repair electrical system malfunctions. Service and analyze starting and chagrining system malfunctions on all types of automotive, materials handling and construction equipment. Disassemble, inspect, bench test, repair and assemble starting motors, DC Generators, AC Alternators and other electrical components of the starting and charging circuits.

3.2.35 AUTOMOTIVE A/C A-610-0052:

Contractor shall provide qualified instructor personnel to provide advanced instruction on the advanced technical training to diagnose and repair air conditioning systems in both normal field and shop conditions.

3.2.36 ADVANCED DIAGNOSTICS AND SHOP MANAGEMENT A-610-0053:

Contractor shall provide qualified instructor personnel to provide advanced instruction on the advanced training in diagnostic and troubleshooting procedures, to isolate malfunctions in military and commercial vehicles, utilizing analog, digital, and computer diagnostic equipment in both the field and shop conditions.

3.3 INSTRUCTOR WORKLOAD DATA: Based on historical data, it is estimated that there are 35 courses, 242 instructional days at 8 instructional hours per day.

See Addendum I for courses that were taught in FY24/25 and the number of instructors required. See Addendum II FY26 proposed course schedule.

3.4. INSTRUCTOR PLACEMENT AND WORK REQUIREMENTS: Due to student load changing from year to year the Government shall have the capability to move instructors from one schoolhouse to another to support the training requirement. All instructor moves will be coordinated between the COR and contract onsite lead at least 30 days prior to moving any instructor(s). Instructors will only be cross utilized from the Specialty OF7 Schoolhouse and the in rate (BU, CE, EO, and SW) schoolhouses.

3.5 The total annual hours, inclusive of both instructors and the Master Scheduler, shall be no less than 45,760 hours. Proposals offering fewer than 45,760 hours would cause mission degradation and will be deemed unacceptable..

4.0 SKILLS AND KNOWLEDGE REQUIRED FOR INSTRUCTOR SERVICES

4.1. SKILLS AND KNOWLEDGE REQUIRED FOR TASK 1: TRAINING MASTER SCHEDULER

POSITION: The Training Master Scheduler shall have specialized experience, knowledge, skills and abilities to successfully perform the duties of the position. Experience should demonstrate a practical knowledge of the subject area of the position and the methods and techniques utilized in scheduling training in both a classroom and field exercise environment. The Training Master Scheduler shall possess knowledge of Navy Seabee structure and be familiar with all construction-related vocations.

The Training Master Scheduler shall have training scheduling experience gained through educational and job experience. The Training Master Scheduler shall be able to communicate clearly, concisely and effectively with all levels of personnel within the training environment. The Training Master Scheduler shall have knowledge and ability to operate computers and other office automated systems in order to prepare reports/ presentations, data input and extraction and possess experience in drafting course curriculum.

Minimum Qualification:

- The Training Master Scheduler shall possess a training scheduling background and a minimum of 5 years of scheduling experience as a training scheduler.

Physical Demands: Work is primarily in an office environment. Course monitoring shall on occasion require interaction and observation in a field construction site environment with a minimum degree of physical exertion. During site project monitoring, the Training Master Scheduler shall be required to be knowledgeable of safety regulations and requirements involving construction site operations. The Training Master Scheduler shall wear all prescribed safety gear/equipment when appropriate.

Work Environment: The Contractors working environment is primarily in an office setting. Project site observations involve everyday risks and discomforts associated with work on a construction site.

Replacement Personnel: Should the Training Master Scheduler need to be replaced at any time during the contract period of performance, the Training Master Scheduler replacement shall be as qualified or more qualified than the person being replaced. The selection and hiring of replacement personnel is the sole responsibility of the contractor and should be completed within one week of the vacancy.

4.2 SKILLS AND KNOWLEDGE REQUIRED FOR TASK II: INSTRUCTOR POSITIONS:

Instructor personnel shall have an extensive knowledge of construction management principles including planning, estimating, material take-off, resource leveling, project site layout, techniques of foremanship and actual construction experience.

Minimum Qualifications:

- Instructor personnel shall be a certified Journeyman in the area in which they are providing primary training.
- Instructor personnel shall have Navy Enlisted Classification (NEC) 9502/805A Instructor or other service equivalent.
- The Instructor shall have a minimum of 5 years of experience documented through work experience from the private sector, military or both, or appropriate valid certifications equivalent to the NEC 9502/805A. The Instructor personnel shall have the ability documented through work experience to operate visual information equipment (LCD projectors, smart boards, document cameras, or other visual aid equipment) that can be utilized as training aides.
- The Instructor personnel shall have experience documented through work experience in the use and operations of computers and other automated office equipment used to produce and grade exams, prepare reports and input/extract data.
- Instructor personnel shall obtain a favorable determination from a National Agency Check Local Agency and Credit check (NACLC) investigation.

- Maintain valid Cardiopulmonary Resuscitation (CPR) qualification.

Physical Demands: Work is split between a classroom environment requiring long periods of standing and field training projects requiring prolonged standing and working in an active construction site environment. Additional physical demands require use of power hand tools, lifting or construction materials and climbing of ladders. Instructor personnel will have to maneuver on, around and under structures in the performance of their duties.

Work Environment: The work environment involves everyday risks or discomforts that require normal safety precautions typical of such places as offices, classrooms, training rooms, job sites and field exercises. Instructor personnel will have to take additional safety precautions when maneuvering on, around and under structures performing quality control inspections. Instructor personnel are also responsible for student safety and that students comply with safety precautions and wear proper safety equipment as needed or directed when in a training environment, construction project site or field exercise.

Replacement Personnel: Should an instructor need to be replaced at any time during the contract period of performance, the instructor replacement shall be as qualified or more qualified than the person being replaced. The selection and hiring of replacement personnel is the sole responsibility of the Contractor and shall be completed within two weeks of the vacancy.

4.3 SPECIFIC KNOWLEDGE REQUIREMENTS

4.3.1. BUILDER APPRENTICE/BUILDER ADVANCED INSTRUCTOR: Instructor personnel shall have documented experience in light frame structure, suspended ceiling tile, hot tar roofing, three-tab composition shingles, concrete masonry structure, installing/finishing drywall, preparing/installing doors and casing, baseboard/molding, installing composite floor tile, ceramic tile, painting, mixing, transporting, placing and finishing concrete at a master level. Due to class size and safety requirements, the BU-A course requires 2 instructors be present for each day of instruction from commencement of the course until graduation. There is no waiver for the 2 instructor requirement for the BU-A course of instruction. Builder courses include paragraphs 3.2.1, 3.2.8, 3.2.9, 3.2.10, 3.2.11, 3.2.12, and 3.2.13.

4.3.2. EQUIPMENT OPERATOR ADVANCED INSTRUCTOR: Instructor personnel shall have documented experience in soil stabilization and asphalt placement utilizing grading and paving equipment. The equipment operator shall possess all valid licenses and certifications for the equipment in which they are providing training on. The Instructor personnel shall have a minimum of 5 years of experience with construction equipment. Documented experience is required for each piece of equipment for which the instructor personnel is providing training. Instructor personnel are designated by the command to conduct all Equipment Operator training. Equipment Operator courses include paragraphs 3.2.22, 3.2.23, and 3.2.24.

4.3.3. STEELWORKER APPRENTICE/ADVANCE INSTRUCTOR: Instructor shall be a skilled welder with documented experience in metal identification. Experience with Gas Metal Arc (GMA) welding, Gas Tungsten Arc (GTA) welding, read and interpret welding symbols, braze and solder, Shielded Metal Arc Welding (SMAW), operate and maintain power shears, lay out, erect, inspect and test riggings and hoisting devices at a masters level or equivalent. Instructor shall have a minimum of 10 years of steelworker/welding experience. Instructor personnel are designated by the command for the Advanced Steel Worker School that consist of the following courses under paragraphs 3.2.2, 3.2.3, 3.2.4, 3.2.14, 3.2.15, 3.2.16, 3.2.17, 3.2.18, 3.2.19, 3.2.20, and 3.2.21.

4.3.4. SPECIALTY OF SCHOOL INSTRUCTOR: Instructor shall have broad knowledge and experience in construction planning and estimating; project execution, and project management. In addition, the instructor shall have a working knowledge of tool repair and maintenance of hand and power tools including carpentry shop equipment.

4.3.5. CONSTRUCTION INSPECTOR: Instructor shall have broad knowledge and experience in construction administration including detail duties and responsibilities of construction inspector throughout the various types of Navy inspection organizations, such as ROICC, public works, naval construction forces. Items dealt with include: Contract management, planning for contract compliance and safety, turnover and acceptance of work, damages, claims, labor standards and standards of conduct. Instructor shall have a minimum of 5 years of construction

inspector experience. Instructor personnel are designated by the command for the Construction Inspector Schools that consist of paragraph 3.2.25.

4.3.6. CONSTRUCTION PROJECT PLANNING AND SCHEDULING, AND CONSTRUCTION

PROJECT EXECUTION: Instructor shall have the knowledge and skill necessary to plan, estimate, schedule, and report on construction projects at existing Naval bases, advanced bases and selected off-base sites during peacetime and contingency operations in accordance with NTRP publications. Instructor shall have a minimum of 5 years of construction inspector experience. Instructor personnel are designated by the command for the Construction Planning and Estimating and CMCT Schools that consist of the following courses under paragraphs 3.2.5, 3.2.6, 3.2.7, 3.2.8, 3.2.9, and 3.2.10.

4.3.7. TOOL AND EQUIPMENT MAINTENANCE TECHNICIAN: Instructor shall have the working knowledge and skills to provide technical training in the installation, repair and maintenance of carpentry shop equipment, blade reconditioning equipment, portable power and hand tools, as well as procedures for establishing preventive maintenance schedules, set-up and maintenance of manufacturer's and technical files, and recommended maintenance and operating procedures for central tool rooms. Instructor shall have a minimum of 5 years of construction inspector experience. Instructor personnel are designated by the command for the Construction Inspector Schools that consist of paragraph 3.2.26.

4.3.8. CONSTRUCTION ELECTRICIAN ADVANCE INSTRUCTOR: Instructor shall be skilled in the principles of electrical theory; street lighting systems; electrical transmission systems; repair of electrical motors and generators; operation and maintenance of electrical power plants; solid state fundamentals; interoffice communication systems; telephone systems; installation and design of interior wiring and lighting systems; motor controller installation; and major/minor appliance repair. In addition, the instructor shall have knowledge in the techniques and procedures for joining power cable employing straight and branched splices; termination and dead ends, testing and fault finding of cable system. Slice underground and aerial communications cable including cable terminations. Construct bridge and straight slices in sheathed communication cable. Locate faults using appropriate equipment, techniques and safety precautions. Splice and terminate fiber optic cable with mechanical and fusion splices. Use power meter for testing and fault finding. Instructor shall have a minimum of 10 years of construction electrician experience. Instructor personnel are designated by the command for the Advanced Construction Electrician Schools that consist of the following courses under paragraphs 3.2. 27, 3.2.28, 3.2.29, 3.2.30, and 3.2.31

4.3.9. ADVANCED CONSTRUCTION MECHANIC INSTRUCTOR: Instructor shall be skilled in troubleshooting, tune-up and maintenance of gasoline, diesel engines; automotive and construction equipment power train, chassis and component assemblies. This includes valve and cylinder reconditioning testing and analysis of electrical and fuel injection systems while employing appropriate test equipment. Instructor shall have a minimum of 10 years of construction electrician experience. Instructor personnel are designated by the command for the Advanced Construction Mechanic Schools that consist of the following courses under paragraphs 3.2.32, 3.2.33, 3.2.34, 3.2.38, and 3.2.36.

4.4. PHYSICAL/ENVIRONMENTAL DEMANDS: Instructor personnel during field exercises must deal with extreme weather/outdoor seasonal conditions associated with training performed exclusively in an outdoor environment requiring prolonged periods wearing chemical and radiological equipment.

5.0 WORKING HOURS/SHIFT SCHEDULES: The information provided is based on the existing work schedule. Core hours are Monday – Friday 0700 – 1600, excluding weekends and legal public holidays. The workday consists of 8 hours. The command, at their discretion, can revise the work schedule between the hours of 0600 – 1800 in order to meet training requirements so long as the core hours do not exceed 8 hours per day or create situations requiring shift-differential or other pay rates outside established normal working hours. Additionally, Instructors shall be required to travel and travel is anticipated to be conducted outside of the Gulfport area.

5.1 FEDERAL GOVERNMENT HOLIDAYS:

- | | |
|-----------------------------------|-----------------------|
| a. New Year's Day | 1st day of January |
| Martin Luther King Jr.'s Birthday | 3rd Monday of January |

Presidents Day	3rd Monday of February
Memorial Day	Last Monday of May
Juneteenth Day	19 th day of June
Independence Day	4th day of July
Labor Day	1st Monday of September
Columbus Day	2nd Monday of October
Veterans Day	11th day of November
Thanksgiving Day	4th Thursday of November
Christmas Day	25th day of December

- b. When one of the above designated legal holidays falls on a Sunday, the following Monday will be observed as a legal holiday. When a legal holiday falls on a Saturday, the proceeding Friday is observed as a legal holiday. This list of holidays relates to Government duty days and is not intended to supplement or otherwise alter the provisions of any Wage Determination regarding applicable paid holidays.
- c. It is understood and agreed between the Government and the Contractor that observance of such days by Government personnel shall not be a reason for an additional period of performance, or entitlement of compensation except as set forth within the contract. In the event the Contractor's personnel work during the holiday, the Contractor may reimburse them; however, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, other than their normal compensation for the time worked, unless stipulated otherwise. This provision does not preclude reimbursement for authorized overtime work if applicable.
- d. When the Department of Defense grants excused absence to its employees, the Contractor agrees to continue to provide sufficient personnel to perform critical tasks already in operation or scheduled and shall be guided by the instructions issued by the Contracting Officer (KO) or the Contracting Officer's Representative (COR). Changes in employee work schedules shall comply with the terms and conditions of the contract, to include payment provisions. Contract workers will be allowed to telework during base closures for natural disasters and/or national security issues. If telework cannot be accomplished, then the contract worker will be entitled to regular pay for the period of closure.
- e. If Government personnel are furloughed, the Contractor shall contact the KO or the COR to receive direction. It is the Government's decision as to whether the contract price/cost will be affected as a result of Government shutdown and/or furloughed Government employees. In the event of a Government shutdown or furloughed Government employee(s) impacts contract price/cost, a negotiated settlement will be reached as deemed appropriate by the KO.

6.0 PERIOD OF PERFORMANCE:

See SF-1449 schedule.

7.0 PLACE OF PERFORMANCE: The normal place of performance is:

Naval Construction Training Center, 5510 CBC 8th Street, Gulfport, MS. 39501-9040
BLDG #s: 46, 47, 49, 50, 57, 67, 68, 69, 70, 305, 343, 344, 345, 346, 360, 363, 372, 363, 372, 376, 385B, 386, 438, 441, and 442.

8.0 TYPE OF CONTRACT: The Government will award a Firm-Fixed Priced Contract.

8.1.0. PHASE IN/PHASE OUT PERIOD: The Government anticipates to make award fourteen (14) days (i.e., two calendar weeks) ahead of the performance start date to allow for a phase in/phase out period to minimize any decreases in productivity and to prevent possible negative impacts on additional services. Phase in costs shall be incorporated into CLIN 0001.

8.1.1. PHASE IN PERIOD: During the phase in period:

- a. The Contractor shall check in to their respective commands, obtain CACs and permissions for Navy Marine Corps Intranet (NMCI) accounts, and required systems access.
- b. The Contractor shall conduct a turnover with their incumbent counterparts, to include but not limited to a walkthrough of processes, introductions to points of contacts, and inventory.
- c. One (1) week prior to the start of the period of performance, resumes for all new hires must be submitted to the COR for review of experience and qualifications.

8.1.2. PHASE OUT PERIOD

- a. The Contractor shall provide an electronic copy of a comprehensive phase out plan for approval of the KO and COR NLT 30 calendar days prior to contract expiration. The plan shall at a minimum identify a training program and a date for transferring responsibilities for each division of work described in the plan.
- b. The Contractor shall provide sufficient experienced personnel during the phase-in and phase-out period to ensure that the services called for by this contract are maintained at the required level of proficiency.
- c. The Contractor shall in good faith work with the successor in transitions and clarification of phase out services.

9.0 WORK ENVIRONMENT AND PHYSICAL DEMANDS

Work environment is in a classroom setting and outside project areas. Outside training projects are conducted year-round and will require exposure to extreme weather conditions. Instruction both in the classroom and outside environment required prolonged period of standing. Instructors shall maintain control and be responsible for the safety and welfare of students at all times during the training process.

10.0 TRAVEL EXPENSE: Travel may be required in support of this contract. Travel expenses incurred by the Contractor for authorized travel shall be reimbursed by the Government under the Travel Line Item in the contract. All travel required during the performance of this contract shall be approved in advance by the Government POC and shall adhere to the Federal Travel Regulations (for travel in 48 contiguous states), the Joint Travel Regulations, Volume 2, DOD Civilian Personnel, Appendix A (for travel to Alaska, Hawaii, Puerto Rico, and U.S. Territories and possessions). The Contractor is encouraged to obtain federal discounts to the maximum extent practical. If applicable, the Government will issue a letter of identification so that Contractor personnel can use Bachelor or Visiting Officer Quarters in the course of official travel. The Contractor will be authorized to travel within the funded travel limitations of this contract on a not-to-exceed (NTE) basis, subject to advance approval by the Government's POC. The Contractor shall obtain approval from the Government's POC prior to initiating any travel. The Contractor shall notify the Government's POC when travel funds expended reach 80% of the funded amount. The Government's liability for reimbursement of travel expenses is limited to the funding available under the Travel Line Item of the contract. The contractor shall estimate \$15,000 for travel per year to complete this effort inclusive of any applicable indirect charges including G&A.

11.0 GENERAL SAFETY AND HOUSEKEEPING: Contractor personnel shall observe and adhere to all applicable safety rules and regulations. Instructors shall be responsible for the general cleanliness of classroom and outside project areas.

12.0 NON-PERSONAL SERVICE STATEMENT: Contractor management shall ensure that personnel properly comply with the performance work standards outlined in the Performance Work Statement. Contractor personnel shall perform their duties independent of, and without the supervision of, any Government official or other Defense Contractor. The tasks, duties, and responsibilities set forth in the contract may not be interpreted or implemented in any manner that results in any Contractor employee creating or modifying Federal policy, obligating the appropriated funds of the United States Government, overseeing the work of Federal employees, providing direct personal services to any Federal employee, or otherwise violating the prohibitions set forth in Parts 7.5 and 37.1 of the Federal Acquisition Regulation (FAR). The Government will control access to the facility and will perform the inspection and acceptance of the completed work.

13.0 PHYSICAL SECURITY: The Contractor shall be responsible for safeguarding all Government equipment, information and property provided for Contractor use IAW OPNAVINST 5530.14E CH-3, Navy Physical Security and Law Enforcement Program. At the close of each work period, Government facilities, equipment and materials shall be secured.

14.0 EMPLOYMENT OF FEDERAL EMPLOYEES: The Contractor shall not knowingly employ any person who is a U.S. Government employee if employing that person would create a conflict of interest. Additionally, the Contractor shall not knowingly employ any person who is an employee of the Government, either military or civilian, unless such person seeks and receives written approval according to DoD 5500.7-R, Joint Ethics Regulations by the individual's commander or director. A copy of the authorization will be provided to the COR. In addition, the Contractor is prohibited from employing Government Quality Assurance Representatives whom the Contractor knows or should have known are responsible for monitoring any contracts/subcontracts awarded to the service provider.

15.0 CONTRACTOR ADVERTISING: The Contractor shall not place or display advertising of any kind on Government property.

16.0 EMERGENCY SERVICES: The Contractor shall have competent personnel trained and capable of dealing with minor personnel injuries. Contractor personnel shall immediately notify their supervisor of any accident requiring emergency medical treatment. The Contractor shall, in turn, notify the COR within 30 minutes or as soon as practicable. Emergency medical treatment and services for Contractor personnel is the responsibility of the Contractor.

17.0 PERSONNEL SAFETY: The Contractor shall immediately correct all safety deficiencies upon notification of the deficiencies by the KO, designated representative or COR, and shall notify the KO of the corrective action to be taken.

18.0 HEALTH PROTECTION CONTINGENCY PLAN: The Contractor shall possess the ability to operate in austere environment at the following Health Protection levels when implemented by the Base Commander.

HPCON Level Purpose: Each HPCON corresponds to the increased risk from the spread of infectious diseases (viruses) representing elevated risks of morbidity and mortality. The Contractor must be postured to respond to the below HPCON levels.

HPCON A - Limited: Health alert. Communicate risk and symptoms of health threat with employees; review plans and preparation.

HPCON B - Moderate: Strict hygiene (no handshaking, wipe commonly used items). If exposed, have employees self-isolate. Maximize use of telework for eligible personnel.

HPCON C - Substantial: Social distancing; limit or cancel in-person meetings, gatherings, temporary duty assignments.

HPCON D - Severe: Restriction of movement (quarantine), mass evacuation, and mass decontamination-
Contractor services not required unless given direction from the Contracting Officer (KO).

19.0 SECURITY REQUIREMENT

Instructor personnel must obtain a favorable determination from an investigation to T3. Work under this contract requires access to personally identifiable information (PII) and information protected by the Privacy Act of 1974. In addition to the security requirements below, Contractors performing work under this contract shall meet the following criteria: Per SECNA V M-5510.30, all individuals with access to PII or Privacy Act information shall be US Citizens; therefore, US Citizenship is a requirement. In all cases contract personnel shall meet eligibility requirements for a position of trust at a minimum. The Contractor shall comply with all applicable DoD security regulations and procedures during the performance of this contract. Contractor shall not disclose and shall safeguard procurement sensitive information, computer systems and data, privacy act data, sensitive but unclassified (SBU) information, classified information, and all Government personnel work products that are obtained or generated in the performance of this contract. Contractor personnel are required to have National Agency Check, Local Agency

Check and Local Credit Check (NACLC) investigation at a minimum in accordance with DoD Instruction 8500.2. Local Agency Check and Local Credit Check shall be submitted and results received prior to commencement of work.

NO FOREIGN NATIONAL WILL BE EMPLOYED ON THIS GOVERNMENT CONTRACT.

AN "UNFAVORABLE" OR "NO DETERMINATION" ADJUDICATION OF THE CONTRACTOR PERSONNELS INVESTIGATION WILL RESULT IN IMMEDIATE TERMINATION OF ACCESS TO THE WORKSPACE, GOVERNMENT COMPUTER/INFORMATION TECHNOLOGY ASSETS AND OFFICIAL RECORDS.

20.0 POST AWARD CONFERENCE/PERIODIC PROGRESS MEETINGS: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office IAW FAR Subpart 42.5, Post Award Orientation. The Contracting Officer (KO), COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings, the KO will apprise the Contractor of how the Government views the Contractor's performance and the Contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be considered into the overall contract price.

21.0 AT LEVEL 1 TRAINING: All Contractor personnel, including subcontractor personnel, requiring access to Navy installations, facilities, or controlled access areas shall complete Antiterrorism Level I awareness training within five (5) calendar days after contract start date or effective date of incorporation of the requirement into the contract, whichever applies. The Contractor shall submit Certificates of completion for each affected Contractor personnel and Subcontractor personnel to the COR (or to the KO, if a COR is not assigned) within five (5) calendar days after completion of training by all personnel and Subcontractor personnel on a recurring annual basis. AT Level I awareness training is available at the following site: <https://jko.jten.mil/courses/AT-level1/launch.html>. If access to a computer is not available, the unit's Level II Anti-terrorism Officer (ATO) will conduct AT Level I training for the Contractor and personnel within five (5) calendar days after contract start and maintain a copy of the attendance roster for one year. Any Contractor personnel hired after contract start shall be required to receive AT Level I training within five (5) calendar days by the ATO. It will also be acceptable for the new hire to take the training online and present the training certificate to the ATO within three (3) calendar days. AT Level I training is an annual requirement with the 12-month period starting on the date of initial training and re-certification NLT the last day of the 12 month period. If the requiring activity does not have an ATO, the first ATO in the chain of command will conduct this training.

22.0 ACCESS AND GENERAL PROTECTION/SECURITY: Policy and Procedures. Contractor and all associated subcontractor personnel shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by Government representative). The Contractor shall also provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce shall comply with all personal identity verification requirements as directed by DoD, Department of the Navy (DoN) and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition at any individual facility or installation change, the Government may require changes in Contractor security matters or processes.

ACCESS TO FEDERAL FACILITIES

Per HSPD-12 and implementing guidance, all Contractor personnel working at a federally controlled base, facility or activity under this clause shall require a DoD CAC. When access to a base, facility or activity is required Contractor employees shall in-process with the Command's Security Manager upon arrival to the Command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

23.0 DEFENSE BIOMETRIC IDENTIFICATION SYSTEM (DBIDS)

The Defense Biometric Identification System (DBIDS) is a DoD-owned and operated system developed by Defense Manpower Data Center as a force protection program to manage personnel identity and access at DoD installations. DBIDS is a network database system designed to easily verify access authorization of personnel entering military installations by using barcodes and fingerprint biometric identifications.

To improve management and force protection at Navy installations, the Navy is transitioning from using the Navy Commercial Access Control System (NCACS) to the Defense Biometric Identification System (DBIDS) for Contractors and vendors requiring access to an installation at no cost to them. The transition will begin 17 April and individuals will have up to 180 days to obtain the permanent card. After August 14, 2017, NCACS cards will no longer be accepted.

In order to obtain base access, an individual needs to acquire DoD sponsorship, have a thorough identity check, be properly vetted, and have a legitimate reason for base access. Identity checks require a passport or a Real ID Act compliant state driver's license. Vetting occurs when the individual's background and ID are compared against authoritative criminal justice data bases, and the individual has a letter or official document from the sponsoring organization which articulates the reason for access. When the above criteria are satisfactorily met, DBIDS credentials are issued.

NCACS cardholders will have 120 days from April 17, 2017 to obtain a temporary DBIDS paper pass. After the applicant obtains their DBIDS paper pass, they will have an additional 180 days to obtain an actual DBIDS card at no cost. Those requesting new access onto installations will receive the DBIDS card at the same time they are initially approved for access. After August 14, 2017, NCACS cards will no longer be accepted for installation access. For more information <https://www.cnmc.navy.mil/Operations-and-Management/Base-Support/DBIDS/>.

24.0 TOOLS AND EQUIPMENT

All Contractors will be provided desk, phone, computer/laptop, and office supplies for use to perform duties. The Heavy Equipment Mechanics will be provided hand/power tools and equipment used in the mechanical trade, including but not limited to torque wrenches, brake tools, gear pullers, compression testers, vacuum analyzers, electric circuit testers, tachometers, brake lathes, diagnostics equipment, etc.

25.0 CONTRACTING OFFICER REPRESENTATIVES (COR) AND ALTERNATE COR

The COR and Alternate COR for this contract will be
PROVIDED AT TIME OF AWARD

The Surveillance and Performance Monitoring (SPM) module in the Procurement Integrated Enterprise Environment (PIEE) [<https://piee.eb.mil/piee-landing/>] for nomination, tracking, documentation, and management of CORs will be used. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: Assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, and specifications; monitor Contractor's performance and notify both the KO and Contractor of any deficiencies; coordinate availability of Government equipment furnished; and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting contract.

26.0 QUALITY CONTROL

Quality Control is the responsibility of the Contractor. The Contractor shall be responsible for the delivery of quality services to the Government in accordance with (IAW) the terms and conditions contained in Federal Acquisition Regulation (FAR) Subpart 52.212-4 entitled, "Contract Terms and Conditions - Commercial Items" and any other applicable -clauses pertaining to quality control.

The Contractor shall develop, implement and maintain an effective Quality Control System which includes a written Quality Control Plan (QCP). The QCP shall implement standardized procedure/ methodology for monitoring and documenting contract performance to ensure all contract requirements are met. The Contractors' QCP shall contain a systematic approach to monitor operations to ensure acceptable services are provided to the Government. The QCP, as a minimum, shall address continuous process improvement; procedures for scheduling, conducting and documentation of inspection; discrepancy identification and correction; corrective action procedures to include procedures for addressing Government discovered non-conformances; procedures for root cause analysis to identify the root cause and root cause corrective action to prevent re-occurrence of discrepancies; procedures for trend

analysis; procedures for collecting and addressing customer feedback/complaints.

Corrective Actions. If at any time, it is determined by the KO that the quality control system, personnel, instructions, controls, tests, or records are not providing results that conform to contract requirements, action shall be taken by the Contractor to correct the deficiency. If a Contract Deficiency Report (CDR) is issued, the Contractor shall develop a Corrective Action Plan (CAP) that identifies the root cause, Corrective Action (CA) for the specific non-conformance, and prevent recurrence, including the timeline for completion.

27.0 QUALITY ASSURANCE

The Government will evaluate the Contractor's performance under this contract IAW the Quality Assurance Surveillance Plan (QASP). This plan is a Government only document primarily focused on what the Government must do to assure that the Contractor has performed IAW the requirements of the contract. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable deficiency rate(s) as illustrated within the PWS and Performance Requirements Summary. All performance ratings will use (Exceptional, Very Good, Satisfactory, Marginal, or Unsatisfactory), as defined in FAR subpart 42.15, Contractor Performance Information. The Government reserves the right to conduct compliance surveillance of any contractual requirement of this acquisition.

28.0 PERFORMANCE REQUIREMENT SUMMARY (PRS)

The performance standards for this PWS are stated in the PRS below:

TASK	Performance Objective	Performance Standards	Frequency	Acceptable Quality level (AQL)	Surveillance Method
3.1.1	Respond to all correspondence pertaining to course issues. Receive phone calls and visitors, answer inquiries concerning scheduling courses.	All inquiries will be handled in a prompt, courteous and professional manner	Continual	100% of inquiries received by the contractor will be responded to. The number of inquiries responded to that meet with customer satisfaction will vary depending on the complexity and nature of the inquiry.	Customer feedback is the primary method of surveillance.

3.1.2	Draft and submit schedules to NCTC designated staff to be used in the execution of Naval Technical Training conducted at NCTC Gulfport and off-site facilities.	Scheduling will consist of all course related material, rosters, and instructors assigned and will be made available in advance of course start date.	Daily	The acceptable level is 100% of courses scheduled.	Customer feedback is the primary method of surveillance.
3.1.3	Schedule and conduct weekly meetings related to NCTC Gulfport, Schoolhouse Departments, D1 and F1 course coordinators, the Naval Construction Group Two (NCG2) and tenant Naval Mobile Construction Battalion (NMCB) training personnel	All scheduled meetings pertaining to course scheduling will be attended. Scheduling conflicts identified will be addressed promptly and resolved in a manner as to not disrupt ongoing courses.	Continual	Meetings scheduled will be attended on time. Scheduling conflicts, problems, or issues will be identified and resolved within 48 hours.	Customer feedback is the primary method of surveillance
3.1	The contractor shall provide NCTC Gulfport with the required amount of qualified instructors to teach Apprentice, Journeyman, and Advanced courses at Naval Construction Battalion Center Gulfport, MS. and off site locations as directed.	Courses will be taught as scheduled IAW the course syllabus and completed within the scheduled timeframe. All areas identified in the course outline will be thoroughly covered. Remedial training will be provided as required.	Continual	Training shall be conducted eight hours a day five days a week for the length of the course. The acceptable level is 100% of courses scheduled will be taught in their entirety. The target quality of the training provided is 100%. The actual quality level is derived from student feedback upon completion of the course. Improvements or changes to the course will be reviewed by NCTC based on student feedback and instructor evaluation.	Customer feedback, instructor evaluations, and student critiques are the primary method of surveillance

29.0 AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the

Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Contracting Officer is:

NAME: Contracting Officer
 ADDRESS: 110 Yorktown Ave 3rd Floor, Jacksonville, FL 32212
 TELEPHONE: (564) 230-2273

30.0 ACRONYMS AND ABBREVIATIONS:

A	Apprentice Training (Associated with Basic Builder and Steel Worker Courses)
ADV-BU	Advanced Builder
AO	Administrative Officer
AWD	Area Wage Determination
BU-A	Builder Apprentice Training
C1	Advance Specialized Skill Training (follow-on training to Basic Apprentice Training)
CANTRAC	Catalog of Navy Training Courses
CDP	Course Data Process
CETARS	Corporate Enterprise Training Activity Resource Systems (US Navy)
CMCT	Construction Management Continuum Training
CNO	Chief of Naval Operations
CONUS	Continental United States
COR	Contracting Officer Representative
CSFE	Center for Seabees and Facilities Engineering
D1	Individual, Not Rating-Specific Professional Development Functional Skill Training
DFWP	Drug Free Workplace Program
DGR	Designated Government Representative
DISCO	Defense Industrial Security Clearance Officer
DODAAC	Department of Defense Activity Address Code
DoL	Department of Labor
DoNCAF	Department of the Navy Central Adjudication Facility
e-QIP	Electronic Questionnaires for Investigations Processing
D-0S	Defense Operations Specialist
ERPs	Equipment Replacement Plans
F1	Individual Skill or Rating-Specific Functional Training
FAD	Facility Access Determination
FAR	Federal Acquisition Regulation
FOIA	Freedom of Information Act
FSO	Facility Security Officer
G1	Pipeline Skill Progression Training
GMAW	Gas Metal Arc Welding
ISO	International Organization for Standardization
JPAS	Joint Personnel Adjudication System
KO	Contracting Officer
MOPP	Mission-Oriented Protective Posture (US DoD)
MOS	Military Occupation Specialties
NAC	National Agency Check
NACLC	National Agency Check with Local Agency and Credit Checks
NATO	North Atlantic Treaty Organization
NAVFAC	Naval Facilities Engineering Command
NCF	Naval Construction Force
NCG	Naval Construction Group
NCTC	Naval Construction Training Center

NETC Naval Education and Training Command
NISP National Industrial Security Program
NITRAS Navy Integrated Training Resources and Administration System
NMCB Naval Mobile Construction Battalion
OAW Oxy-acetylene Brazing, Cutting and Welding
OCONUS Outside the continental United States
OPM Office of Personnel Management
PCDP Personal and Career Development Plan
PII Personally Identifiable Information
PWS Performance Work Statement
QAE Quality Assurance Evaluator
QCP Quality Control Plan
QIP Questionnaires for Investigations Processing
RST Reinforcing Steel
SAAR-N System authorization Access Request - Navy
SCA Service Contract Act
SCI Sensitive Compartmental Information

ADDENDUM I

FY24 Contract supported courses

FY	UIC	ACTIVITY	CIN	TC	COURSE TITLE	PCDP	CDP
BUILDER A-SCHOOL					KTR Instructors:		6
2024	31168	S NCTC GULFPORT	A-710-0010	A1	ITRO BU A SCHOOL-AEC		6286
STEEL WORKER A-SCHOOL					KTR Instructors:		4
2024	31168	S NCTC GULFPORT	A-711-0005	A1	SW-A USN-(BL 0)		18TS
2024	31168	S NCTC GULFPORT	A-711-0006	A1	SW-A USN-(BL 1)		18TS
SPECIALTY/OF7 SCHOOLS					KTR Instructors:		5
2024	31168	S NCTC GULFPORT	A-412-0012	C1	CONST P&E SPEC- TCT		350Z
2024	31168	S NCTC GULFPORT	A-710-0022	C1	CONSTRUCTION INPSECTOR		366X
2024	31168	S NCTC GULFPORT	A-710-0051	D1	CREW LEADER, CMCT-TCT		07KH
2024	31168	S NCTC GULFPORT	A-710-0052	D1	SUPERVISOR, CMCT-TCT		07KK
2024	31168	S NCTC GULFPORT	A-712-010	C1	TOOL & EQUIPMENT MAINT.		351P
BUILDER ADVANCED SCHOOLS					KTR Instructors:		4
2024	31168	S NCTC GULFPORT	A-710-0057	C1	BUILDER CORE C SCHOOL PIPELINE	09DE	
2024	31168	S NCTC GULFPORT	A-710-0055	G1	CONCRETE AND MASONRY-TCT	09DE Segments	09CG
2024	31168	S NCTC GULFPORT	A-710-0054	G1	STRUCTURE FRAMING-TCT		09CE

2024	31168	S NCTC GULFPORT	A-710-0056	G1	INTERIOR AND EXTERIOR FINISHES-TCT		09CJ
2024	31168	S NCTC GULFPORT	A-710-0044	F1	HEAVY CONST I- TCT		396H
2024	31168	S NCTC GULFPORT	A-710-0045	F1	HEAVY CONST II- TCT		396K
2024	31168	S NCTC GULFPORT	A-710-0038	D1	POWDER ACT TOOLS-TCT		3532
EO SCHOOLS					KTR Instructors: 1		
2024	31168	S NCTC GULFPORT	A-730-0049	C1	EO CORE C SCHOOL PIPELINE	09DR	
2024	31168	S NCTC GULFPORT	A-730-0046	G1	TRANSPORTATIO N OPS-TCT	09DR Segments	09D6
2024	31168	S NCTC GULFPORT	A-730-0047	G1	EARTHWORK OPS- TCT		09D8
2024	31168	S NCTC GULFPORT	A-730-0048	G1	PAVEMENTS-TCT		09DA
ADVANCED STEEL WORKER SCHOOLS					KTR Instructors: 1		
2024	31168	S NCTC GULFPORT	A-711-0031	C1	WELDING SUPERVISOR-TCT		09DC
2024	31168	S NCTC GULFPORT	A-711-0030	C1	SW CORE C PIPELINE	09DW	
2024	31168	S NCTC GULFPORT	A-711-0026	G1	SHEETMETAL WORK-TCT	09DW SEGMENTS	436J
2024	31168	S NCTC GULFPORT	A-711-0027	G1	STEEL REINFORCING- TCT		436L
2024	31168	S NCTC GULFPORT	A-711-0024	G1	GAS CUT/WELD- TCT		436E
2024	31168	S NCTC GULFPORT	A-711-0025	G1	METAL FAB & LAY OUT-TCT		436G
2024	31168	S NCTC GULFPORT	A-711-0022	G1	ARC WELDING (STRUCT)-TCT		436A
2024	31168	S NCTC GULFPORT	A-711-0023	G1	ARC WELDING (PIPE)-TCT		436C
2024	31168	S NCTC GULFPORT	A-711-0002	G1	MIG/TIG-TCT		3753

**TOTAL
CONTRACTOR
INSTRUCTORS: 21**

FY25 Contract supported courses

FY	UIC	ACTIVITY	CIN	TC	COURSE TITLE	PCDP	CDP
BUILDER A-SCHOOL			KTR Instructors: 6				
2025	31168	S NCTC GULFPORT	A-710-0010	A1	ITRO BU A SCHOOL-AEC		6286

STEEL WORKER A-SCHOOL						KTR Instructors:	4
2025	31168	S NCTC GULFPORT	A-711-0005	A1	SW-A USN- BLOCK 0		18TS
2025	31168	S NCTC GULFPORT	A-711-0006	A1	SW-A USN- BLOCK 1		18TT
2025	31168	S NCTC GULFPORT	A-711- 00XX	A1	SW-A USN		XXXX
SPECIALTY/OF7 SCHOOLS						KTR Instructors:	4.5
2025	31168	S NCTC GULFPORT	A-412-0012	C1	CONST P&E SPEC-TCT		350Z
2025	31168	S NCTC GULFPORT	A-412-0028	G1	CONST PROJ EST		17YY
2025	31168	S NCTC GULFPORT	A-710-0051	D1	CREW LEADER, CMCT-TCT		07KH
2025	31168	S NCTC GULFPORT	A-412-0029	G1	CONST PROJ PLAN AND SCHED		17Z0
2025	31168	S NCTC GULFPORT	A-710-0052	D1	SUPERVISOR, CMCT-TCT		07KK
2025	31168	S NCTC GULFPORT	A-412-0030	G1	CONST PROJ EXE		17Z2
2025	31168	S NCTC GULFPORT	A-710-0022	C1	CONSTRUCTION INSPECTOR		366X
2025	31168	S NCTC GULFPORT	A-712-0010	C1	TOOL AND EQUIPMENT MAINTENANCE		351P
BUILDER ADVANCED SCHOOLS						KTR Instructors:	4
2025	31168	S NCTC GULFPORT	A-710-0055	G1	CONCRETE AND MASONRY-TCT	09DE Segments	09CG
2025	31168	S NCTC GULFPORT	A-710-0054	G1	STRUCTURE FRAMING-TCT		09CE
2025	31168	S NCTC GULFPORT	A-710-0056	G1	INTERIOR AND EXTERIOR FINISHES-TCT		09CJ
2025	31168	S NCTC GULFPORT	A-710-0044	F1	HEAVY CONST I- TCT		396H
2025	31168	S NCTC GULFPORT	A-710-0045	F1	HEAVY CONST II- TCT		396K
2025	31168	S NCTC GULFPORT	A-710-0038	D1	POWDER ACT TOOLS-TCT		3532
ADV STEEL WORKER SCHOOLS						KTR Instructors:	1
2025	31168	S NCTC GULFPORT	A-711-0031	C1	WELDING SUPERVISOR- TCT		09DC
2025	31168	S NCTC GULFPORT	A-711-0026	G1	SHEETMETAL WORK-TCT	09DW SEGMENTS	436J

2025	31168	S NCTC GULFPORT	A-711-0027	G1	STEEL REINFORCING- TCT		436L
2025	31168	S NCTC GULFPORT	A-711-0024	G1	GAS CUT/WELD- TCT		436E
2025	31168	S NCTC GULFPORT	A-711-0025	G1	METAL FAB & LAY OUT-TCT		436G
2025	31168	S NCTC GULFPORT	A-711-0022	G1	ARC WELDING (STRUCT)-TCT		436A
2025	31168	S NCTC GULFPORT	A-711-0023	G1	ARC WELDING (PIPE)-TCT		436C
2025	31168	S NCTC GULFPORT	A-711-0002	G1	MIG/TIG-TCT		3753
EO SCHOOLS				KTR Instructors:		1	
2025	31168	S NCTC GULFPORT	A-730-0046	G1	TRANSPORTATIO N OPS-TCT	09DR Segments	09D6
2025	31168	S NCTC GULFPORT	A-730-0047	G1	EARTHWORK OPS-TCT		09D8
2025	31168	S NCTC GULFPORT	A-730-0048	G1	PAVEMENTS-TCT		09DA
CE SCHOOLS				KTR Instructors:		.5	
2025	31168	S NCTC GULFPORT	A-721-0001	G1	INTERIOR WIRING		372F
2025	31168	S NCTC GULFPORT	A-721-0023	C1	CABLE SPLICING		4069
2025	31168	S NCTC GULFPORT	A-721-0024	G1	ADV BASE POWER PLANT MAINT		576N
2025	31168	S NCTC GULFPORT	A-721-0032	G1	ELECT MOTORS AND CONT		396Y
2025	31168	S NCTC GULFPORT	A-721-0034	G1	ELECT THEORY		400X
CM SCHOOLS				KTR Instructors:		0	
2025	31168	S NCTC GULFPORT	A-610-0048	G1	POWER TRAIN & CHASSIS		09CP
2025	31168	S NCTC GULFPORT	A-610-0050	G1	HYDRAULIC AND PNEUMATIC		09CS
2025	31168	S NCTC GULFPORT	A-610-0051	G1	ENGINES, FUEL, & ELECT		09CU
2025	31168	S NCTC GULFPORT	A-610-0052	G1	AUTOMOTIVE A/C		09CW
2025	31168	S NCTC GULFPORT	A-610-0053	C1	ADV DIAG AND SHOP MANGEMENT		09CY

2025	31168	S NCTC GULFPORT	A-610-0055	F1	CRANE MAINT & INSP		23F3
------	-------	--------------------	------------	----	-----------------------	--	------

TOTAL CONTRACTOR INSTRUCTORS 21

ADDENDUM II

FY26 Contract supported courses

FY	UIC	ACTIVITY	CIN	TC	COURSE TITLE	PCDP	CDP
BUILDER A-SCHOOL						KTR Instructors: 6	
BLDG #'s : 47, 50, 57, 68, 69, 360, 441, 442							
2026	31168	S NCTC GULFPORT	A-710-0010	A1	INTRO BU A SCHOOL-AEC		6286
STEEL WORKER A-SCHOOL						KTR Instructors: 4	
BLDG #'s : 67, 68, 441							
2026	31168	S NCTC GULFPORT	A-711-0005	A1	SW-A USN- BLOCK 0		18TS
2026	31168	S NCTC GULFPORT	A-711-0006	A1	SW-A USN- BLOCK 1		18TT
2026	31168	S NCTC GULFPORT	A-711- 00XX	A1	SW-A USN		XXXX
SPECIALTY/OF7 SCHOOLS						KTR Instructors: 4.5	
BLDG #'s : 344, 386, 438, 441							
2026	31168	S NCTC GULFPORT	A-412-0028	G1	CONST PROJ EST		17YY
2026	31168	S NCTC GULFPORT	A-412-0029	G1	CONST PROJ PLAN AND SCHED		17Z0
2026	31168	S NCTC GULFPORT	A-412-0030	G1	CONST PROJ EXE		17Z2
2026	31168	S NCTC GULFPORT	A-710-0022	C1	CONSTRUCTION INSPECTOR		366X
2026	31168	S NCTC GULFPORT	A-712-0010	C1	TOOL AND EQUIPMENT MAINTENANCE		351P
BUILDER ADVANCED SCHOOLS						KTR Instructors: 4	
BLDG #'s : 46, 49, 68, 69, 344, 441, 442							
2026	31168	S NCTC GULFPORT	A-710-0055	G1	CONCRETE AND MASONRY-TCT	09DE Segments	09CG
2026	31168	S NCTC GULFPORT	A-710-0054	G1	STRUCTURE FRAMING-TCT		09CE
2026	31168	S NCTC GULFPORT	A-710-0056	G1	INTERIOR AND EXTERIOR FINISHES-TCT		09CJ
2026	31168	S NCTC GULFPORT	A-710-0044	F1	HEAVY CONST I- TCT		396H

2026	31168	S NCTC GULFPORT	A-710-0045	F1	HEAVY CONST II- TCT		396K
2026	31168	S NCTC GULFPORT	A-710-0038	D1	POWDER ACT TOOLS-TCT		3532
ADV STEEL WORKER SCHOOLS				KTR Instructors:		1	
BLDG #'s : 67, 68, 441							
2026	31168	S NCTC GULFPORT	A-711-0031	C1	WELDING SUPERVISOR- TCT	09DW SEGMENTS	09DC
2026	31168	S NCTC GULFPORT	A-711-0026	G1	SHEETMETAL WORK-TCT		436J
2026	31168	S NCTC GULFPORT	A-711-0027	G1	STEEL REINFORCING- TCT		436L
2026	31168	S NCTC GULFPORT	A-711-0024	G1	GAS CUT/WELD- TCT		436E
2026	31168	S NCTC GULFPORT	A-711-0025	G1	METAL FAB & LAY OUT-TCT		436G
2026	31168	S NCTC GULFPORT	A-711-0022	G1	ARC WELDING (STRUCT)-TCT		436A
2026	31168	S NCTC GULFPORT	A-711-0023	G1	ARC WELDING (PIPE)-TCT		436C
2026	31168	S NCTC GULFPORT	A-711-0002	G1	MIG/TIG-TCT		3753
EO SCHOOLS				KTR Instructors:		1	
BLDG #'s : 363, 372							
2026	31168	S NCTC GULFPORT	A-730-0046	G1	TRANSPORTATIO N OPS-TCT	09DR Segments	09D6
2026	31168	S NCTC GULFPORT	A-730-0047	G1	EARTHWORK OPS-TCT		09D8
2026	31168	S NCTC GULFPORT	A-730-0048	G1	PAVEMENTS-TCT		09DA
CE SCHOOLS				KTR Instructors:		.5	
BLDG #'s : 305, 385B, 386							
2026	31168	S NCTC GULFPORT	A-721-0001	G1	INTERIOR WIRING		372F
2026	31168	S NCTC GULFPORT	A-721-0023	C1	CABLE SPLICING		4069
2026	31168	S NCTC GULFPORT	A-721-0024	G1	ADV BASE POWER PLANT MAINT		576N
2026	31168	S NCTC GULFPORT	A-721-0032	G1	ELECT MOTORS AND CONT		396Y

2026	31168	S NCTC GULFPORT	A-721-0034	G1	ELECT THEORY		400X
CM SCHOOLS (classes and instructor maybe added in the near future)							
				KTR Instructors:		0	
BLDG #'s : 70, 345, 346, 360, 376							
2026	31168	S NCTC GULFPORT	A-610-0048	G1	POWER TRAIN & CHASSIS		09CP
2026	31168	S NCTC GULFPORT	A-610-0050	G1	HYDRAULIC AND PNEUMATIC		09CS
2026	31168	S NCTC GULFPORT	A-610-0051	G1	ENGINES, FUEL, & ELECT		09CU
2026	31168	S NCTC GULFPORT	A-610-0052	G1	AUTOMOTIVE A/C		09CW
2026	31168	S NCTC GULFPORT	A-610-0053	C1	ADV DIAG AND SHOP MANGEMENT		09CY
2026	31168	S NCTC GULFPORT	A-610-0055	F1	CRANE MAINT & INSP		23F3

TOTAL CONTRACTOR INSTRUCTORS 21

ADDENDUM III

EQUIPMENT INSTRUCTOR PROVIDES TRAINING ON THE FOLLOWING:

Commercial License is required to operate and provide training on State Truck and Tractor Trailer Truck. Tractor Trucks are both manual and automatic transmissions. Forklift license is required to operate and provide training on forklifts. Individual certification is required for Loader, Grader, Asphalt Paver, and Bulldozer.

D6T Caterpillar Bulldozer
 D6K Caterpillar Bulldozer
 120M Caterpillar Grader
 924G Caterpillar Loader
 924H Caterpillar Loader
 613 Caterpillar Scraper
 621 Caterpillar Scraper
 936 Caterpillar Track Loader
 320D Caterpillar Excavator
 200CLC John Deere Excavator
 279D Caterpillar Skid Steer
 325 John Deer Skid Steer
 MK31 Tractor
 MK28 Truck
 MK30 Dump Truck
 15 Ton Asphalt Dump Truck
 55 Ton Globe Trailer
 HTT Tractor
 HITT Tractor
 534D Tandem Drum Roller
 553E Vibratory Roller
 150C 9-Wheel Roller
 AP655C/D Asphalt Paver
 JLG Sky-Track Forklift 11K

444 John Deere Forklift 12K
Warehouse Forklift 4K-6K
Seamon Maxon Rotary Tiller

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director		Wage Determination No.: 2015-5147 Revision No.: 28 Date Of Last Revision: 12/03/2025

State: Mississippi

Area: Mississippi Counties of Hancock, Harrison, Jackson

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		16.70
01012 - Accounting Clerk II		18.74
01013 - Accounting Clerk III		20.96
01020 - Administrative Assistant		26.55
01035 - Court Reporter		20.70
01041 - Customer Service Representative I		15.32
01042 - Customer Service Representative II		16.72
01043 - Customer Service Representative III		18.76
01051 - Data Entry Operator I		14.96
01052 - Data Entry Operator II		16.32
01060 - Dispatcher, Motor Vehicle		17.97
01070 - Document Preparation Clerk		16.49
01090 - Duplicating Machine Operator		16.49
01111 - General Clerk I		15.57
01112 - General Clerk II		16.98
01113 - General Clerk III		19.07
01120 - Housing Referral Assistant		23.07
01141 - Messenger Courier		16.64
01191 - Order Clerk I		17.13
01192 - Order Clerk II		18.69
01261 - Personnel Assistant (Employment) I		18.90
01262 - Personnel Assistant (Employment) II		21.14
01263 - Personnel Assistant (Employment) III		23.56
01270 - Production Control Clerk		28.86
01290 - Rental Clerk		14.85
01300 - Scheduler, Maintenance		18.51
01311 - Secretary I		18.51
01312 - Secretary II		20.70
01313 - Secretary III		23.07
01320 - Service Order Dispatcher		16.07
01410 - Supply Technician		26.55
01420 - Survey Worker		15.83
01460 - Switchboard Operator/Receptionist		14.79
01531 - Travel Clerk I		15.77
01532 - Travel Clerk II		16.76
01533 - Travel Clerk III		19.31
01611 - Word Processor I		16.49
01612 - Word Processor II		18.51
01613 - Word Processor III		20.70
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		23.66
05010 - Automotive Electrician		18.30

05040 - Automotive Glass Installer	17.64
05070 - Automotive Worker	17.64
05110 - Mobile Equipment Servicer	16.24
05130 - Motor Equipment Metal Mechanic	18.94
05160 - Motor Equipment Metal Worker	17.64
05190 - Motor Vehicle Mechanic	19.39
05220 - Motor Vehicle Mechanic Helper	15.53
05250 - Motor Vehicle Upholstery Worker	16.94
05280 - Motor Vehicle Wrecker	17.64
05310 - Painter, Automotive	18.30
05340 - Radiator Repair Specialist	17.64
05370 - Tire Repairer	17.06
05400 - Transmission Repair Specialist	18.94
07000 - Food Preparation And Service Occupations	
07010 - Baker	14.48
07041 - Cook I	13.66
07042 - Cook II	14.84
07070 - Dishwasher	12.30
07130 - Food Service Worker	11.34
07210 - Meat Cutter	15.21
07260 - Waiter/Waitress	9.88
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	29.42
09040 - Furniture Handler	22.41
09080 - Furniture Refinisher	29.42
09090 - Furniture Refinisher Helper	24.95
09110 - Furniture Repairer, Minor	27.22
09130 - Upholsterer	29.42
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	12.97
11060 - Elevator Operator	13.47
11090 - Gardener	17.22
11122 - Housekeeping Aide	13.47
11150 - Janitor	13.47
11210 - Laborer, Grounds Maintenance	14.79
11240 - Maid or Houseman	12.50
11260 - Pruner	14.01
11270 - Tractor Operator	16.47
11330 - Trail Maintenance Worker	14.79
11360 - Window Cleaner	14.22
12000 - Health Occupations	
12010 - Ambulance Driver	20.42
12011 - Breath Alcohol Technician	22.99
12012 - Certified Occupational Therapist Assistant	29.89
12015 - Certified Physical Therapist Assistant	30.05
12020 - Dental Assistant	18.35
12025 - Dental Hygienist	32.83
12030 - EKG Technician	27.09
12035 - Electroneurodiagnostic Technologist	27.09
12040 - Emergency Medical Technician	20.42
12071 - Licensed Practical Nurse I	20.55
12072 - Licensed Practical Nurse II	22.99
12073 - Licensed Practical Nurse III	25.62
12100 - Medical Assistant	16.26
12130 - Medical Laboratory Technician	22.42
12160 - Medical Record Clerk	20.20
12190 - Medical Record Technician	22.58
12195 - Medical Transcriptionist	19.54
12210 - Nuclear Medicine Technologist	50.52
12221 - Nursing Assistant I	13.33
12222 - Nursing Assistant II	15.00
12223 - Nursing Assistant III	16.37
12224 - Nursing Assistant IV	18.37
12235 - Optical Dispenser	16.52
12236 - Optical Technician	19.13

12250 - Pharmacy Technician	18.93
12280 - Phlebotomist	17.48
12305 - Radiologic Technologist	24.72
12311 - Registered Nurse I	25.24
12312 - Registered Nurse II	30.86
12313 - Registered Nurse II, Specialist	30.86
12314 - Registered Nurse III	37.34
12315 - Registered Nurse III, Anesthetist	37.34
12316 - Registered Nurse IV	44.76
12317 - Scheduler (Drug and Alcohol Testing)	28.47
12320 - Substance Abuse Treatment Counselor	19.06
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	19.04
13012 - Exhibits Specialist II	23.59
13013 - Exhibits Specialist III	28.85
13041 - Illustrator I	19.04
13042 - Illustrator II	23.59
13043 - Illustrator III	28.85
13047 - Librarian	26.12
13050 - Library Aide/Clerk	11.86
13054 - Library Information Technology Systems Administrator	23.59
13058 - Library Technician	17.09
13061 - Media Specialist I	17.02
13062 - Media Specialist II	19.04
13063 - Media Specialist III	21.23
13071 - Photographer I	17.02
13072 - Photographer II	19.04
13073 - Photographer III	23.59
13074 - Photographer IV	28.85
13075 - Photographer V	34.90
13090 - Technical Order Library Clerk	15.74
13110 - Video Teleconference Technician	19.83
14000 - Information Technology Occupations	
14041 - Computer Operator I	18.02
14042 - Computer Operator II	20.16
14043 - Computer Operator III	22.47
14044 - Computer Operator IV	24.97
14045 - Computer Operator V	27.66
14071 - Computer Programmer I	(see 1) 21.14
14072 - Computer Programmer II	(see 1) 26.20
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	18.02
14160 - Personal Computer Support Technician	24.97
14170 - System Support Specialist	27.66
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	32.25
15020 - Aircrew Training Devices Instructor (Rated)	39.02
15030 - Air Crew Training Devices Instructor (Pilot)	46.78
15050 - Computer Based Training Specialist / Instructor	32.25
15060 - Educational Technologist	39.04
15070 - Flight Instructor (Pilot)	46.78
15080 - Graphic Artist	23.50
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	46.78
15086 - Maintenance Test Pilot, Rotary Wing	46.78
15088 - Non-Maintenance Test/Co-Pilot	46.78
15090 - Technical Instructor	29.00
15095 - Technical Instructor/Course Developer	35.48
15110 - Test Proctor	23.41
15120 - Tutor	23.41
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	

16010 - Assembler	11.69
16030 - Counter Attendant	11.69
16040 - Dry Cleaner	13.54
16070 - Finisher, Flatwork, Machine	11.69
16090 - Presser, Hand	11.69
16110 - Presser, Machine, Drycleaning	11.69
16130 - Presser, Machine, Shirts	11.69
16160 - Presser, Machine, Wearing Apparel, Laundry	11.69
16190 - Sewing Machine Operator	14.34
16220 - Tailor	15.19
16250 - Washer, Machine	12.22
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	27.37
19040 - Tool And Die Maker	30.97
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	19.66
21030 - Material Coordinator	28.86
21040 - Material Expediter	28.86
21050 - Material Handling Laborer	16.39
21071 - Order Filler	15.11
21080 - Production Line Worker (Food Processing)	19.66
21110 - Shipping Packer	19.66
21130 - Shipping/Receiving Clerk	19.66
21140 - Store Worker I	18.52
21150 - Stock Clerk	21.97
21210 - Tools And Parts Attendant	19.66
21410 - Warehouse Specialist	19.66
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	37.77
23019 - Aircraft Logs and Records Technician	32.66
23021 - Aircraft Mechanic I	36.53
23022 - Aircraft Mechanic II	37.77
23023 - Aircraft Mechanic III	38.87
23040 - Aircraft Mechanic Helper	29.94
23050 - Aircraft, Painter	35.30
23060 - Aircraft Servicer	32.66
23070 - Aircraft Survival Flight Equipment Technician	35.30
23080 - Aircraft Worker	34.01
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	34.01
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	36.53
23110 - Appliance Mechanic	27.37
23120 - Bicycle Repairer	24.27
23125 - Cable Splicer	33.42
23130 - Carpenter, Maintenance	23.32
23140 - Carpet Layer	26.36
23160 - Electrician, Maintenance	31.78
23181 - Electronics Technician Maintenance I	36.94
23182 - Electronics Technician Maintenance II	38.35
23183 - Electronics Technician Maintenance III	39.68
23260 - Fabric Worker	25.32
23290 - Fire Alarm System Mechanic	25.73
23310 - Fire Extinguisher Repairer	24.27
23311 - Fuel Distribution System Mechanic	28.32
23312 - Fuel Distribution System Operator	24.27
23370 - General Maintenance Worker	20.28
23380 - Ground Support Equipment Mechanic	36.53
23381 - Ground Support Equipment Servicer	32.66
23382 - Ground Support Equipment Worker	34.01
23391 - Gunsmith I	24.27
23392 - Gunsmith II	26.36
23393 - Gunsmith III	28.32
23410 - Heating, Ventilation And Air-Conditioning Mechanic	22.92

23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	23.70
23430 - Heavy Equipment Mechanic	30.25
23440 - Heavy Equipment Operator	24.19
23460 - Instrument Mechanic	28.32
23465 - Laboratory/Shelter Mechanic	27.37
23470 - Laborer	16.39
23510 - Locksmith	27.37
23530 - Machinery Maintenance Mechanic	36.28
23550 - Machinist, Maintenance	31.81
23580 - Maintenance Trades Helper	22.35
23591 - Metrology Technician I	28.32
23592 - Metrology Technician II	29.29
23593 - Metrology Technician III	30.14
23640 - Millwright	30.60
23710 - Office Appliance Repairer	20.23
23760 - Painter, Maintenance	22.39
23790 - Pipefitter, Maintenance	29.55
23810 - Plumber, Maintenance	28.56
23820 - Pneudraulic Systems Mechanic	28.32
23850 - Rigger	29.74
23870 - Scale Mechanic	26.36
23890 - Sheet-Metal Worker, Maintenance	28.55
23910 - Small Engine Mechanic	18.40
23931 - Telecommunications Mechanic I	28.29
23932 - Telecommunications Mechanic II	30.56
23950 - Telephone Lineman	29.59
23960 - Welder, Combination, Maintenance	29.54
23965 - Well Driller	28.32
23970 - Woodcraft Worker	28.32
23980 - Woodworker	24.27
24000 - Personal Needs Occupations	
24550 - Case Manager	16.37
24570 - Child Care Attendant	10.73
24580 - Child Care Center Clerk	13.38
24610 - Chore Aide	11.54
24620 - Family Readiness And Support Services Coordinator	16.37
24630 - Homemaker	16.37
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	27.15
25040 - Sewage Plant Operator	21.39
25070 - Stationary Engineer	27.15
25190 - Ventilation Equipment Tender	22.25
25210 - Water Treatment Plant Operator	21.39
27000 - Protective Service Occupations	
27004 - Alarm Monitor	16.47
27007 - Baggage Inspector	14.92
27008 - Corrections Officer	17.19
27010 - Court Security Officer	20.34
27030 - Detection Dog Handler	16.69
27040 - Detention Officer	17.19
27070 - Firefighter	20.47
27101 - Guard I	14.92
27102 - Guard II	16.69
27131 - Police Officer I	23.36
27132 - Police Officer II	25.96
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	13.39
28042 - Carnival Equipment Repairer	13.99
28043 - Carnival Worker	11.39
28210 - Gate Attendant/Gate Tender	16.52
28310 - Lifeguard	12.71
28350 - Park Attendant (Aide)	18.48
28510 - Recreation Aide/Health Facility Attendant	13.49

28515 - Recreation Specialist	22.89
28630 - Sports Official	14.72
28690 - Swimming Pool Operator	17.32
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	33.19
29020 - Hatch Tender	33.19
29030 - Line Handler	33.19
29041 - Stevedore I	31.88
29042 - Stevedore II	34.45
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.07
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.99
30021 - Archeological Technician I	18.86
30022 - Archeological Technician II	21.09
30023 - Archeological Technician III	26.13
30030 - Cartographic Technician	26.13
30040 - Civil Engineering Technician	24.58
30051 - Cryogenic Technician I	28.94
30052 - Cryogenic Technician II	31.95
30061 - Drafter/CAD Operator I	18.86
30062 - Drafter/CAD Operator II	21.09
30063 - Drafter/CAD Operator III	23.51
30064 - Drafter/CAD Operator IV	28.94
30081 - Engineering Technician I	16.80
30082 - Engineering Technician II	18.86
30083 - Engineering Technician III	21.09
30084 - Engineering Technician IV	26.13
30085 - Engineering Technician V	31.95
30086 - Engineering Technician VI	38.66
30090 - Environmental Technician	26.13
30095 - Evidence Control Specialist	26.13
30210 - Laboratory Technician	29.99
30221 - Latent Fingerprint Technician I	28.94
30222 - Latent Fingerprint Technician II	31.95
30240 - Mathematical Technician	26.13
30361 - Paralegal/Legal Assistant I	19.67
30362 - Paralegal/Legal Assistant II	24.38
30363 - Paralegal/Legal Assistant III	29.82
30364 - Paralegal/Legal Assistant IV	36.07
30375 - Petroleum Supply Specialist	31.95
30390 - Photo-Optics Technician	26.13
30395 - Radiation Control Technician	31.95
30461 - Technical Writer I	27.93
30462 - Technical Writer II	31.95
30463 - Technical Writer III	38.66
30491 - Unexploded Ordnance (UXO) Technician I	29.28
30492 - Unexploded Ordnance (UXO) Technician II	35.43
30493 - Unexploded Ordnance (UXO) Technician III	42.46
30494 - Unexploded (UXO) Safety Escort	29.28
30495 - Unexploded (UXO) Sweep Personnel	29.28
30501 - Weather Forecaster I	28.94
30502 - Weather Forecaster II	35.20
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2) 23.51
30621 - Weather Observer, Senior	(see 2) 26.13
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.43
31020 - Bus Aide	16.27
31030 - Bus Driver	19.77
31043 - Driver Courier	18.92
31260 - Parking and Lot Attendant	11.90
31290 - Shuttle Bus Driver	13.94
31310 - Taxi Driver	12.25
31361 - Truckdriver, Light	19.80

31362 - Truckdriver, Medium	20.76
31363 - Truckdriver, Heavy	22.58
31364 - Truckdriver, Tractor-Trailer	22.58
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.27
99030 - Cashier	10.96
99050 - Desk Clerk	13.00
99095 - Embalmer	28.16
99130 - Flight Follower	29.28
99251 - Laboratory Animal Caretaker I	23.13
99252 - Laboratory Animal Caretaker II	24.18
99260 - Marketing Analyst	27.16
99310 - Mortician	28.16
99410 - Pest Controller	20.71
99510 - Photofinishing Worker	15.39
99710 - Recycling Laborer	21.56
99711 - Recycling Specialist	24.01
99730 - Refuse Collector	20.43
99810 - Sales Clerk	13.68
99820 - School Crossing Guard	18.43
99830 - Survey Party Chief	27.28
99831 - Surveying Aide	18.04
99832 - Surveying Technician	24.77
99840 - Vending Machine Attendant	17.17
99841 - Vending Machine Repairer	19.50
99842 - Vending Machine Repairer Helper	17.17

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-

covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 1 week paid vacation after 1 year of service with a contractor or successor; 2 weeks after 2 years; 3 weeks after 5 years; and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable

relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."